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SECTION B - CONTINUATION OF SF 1449 BLOCKS

B.1 CONTRACT ADMINISTRATION DATA

1. Contract Administration: All contract administration matters will be handled by the following individuals:

a. CONTRACTOR:

b. GOVERNMENT: Contracting Officer 36C257 Jennifer Stringer

Department of Veterans Affairs

Network Contracting Office (NCO) 17

Central Texas Veterans HCS

1901 Veterans Memorial Dr.

Temple TX 76504

2. CONTRACTOR REMITTANCE ADDRESS: All payments by the Government to the contractor will be made in accordance with:

[X] 52.232-33, Payment by Electronic Funds Transfer—System For Award Management, or

[] 52.232-36, Payment by Third Party

3. INVOICES: Invoices shall be submitted in arrears:

a. Quarterly ☐

b. Semi-Annually ☐

c. Other ☒ Monthly

4. GOVERNMENT INVOICE ADDRESS: All Invoices from the contractor shall be submitted electronically in accordance with VAAR Clause 852.232-72 Electronic Submission of Payment Requests.

www.fsc.va.gov/einvoice.asp

<http://www.tungsten-network.com/US/en/veterans-affairs/>

ACKNOWLEDGMENT OF AMENDMENTS: The offeror acknowledges receipt of amendments to the Solicitation numbered and dated as follows:

AMENDMENT NO	DATE

B.2 STATEMENT OF WORK

STATEMENT OF WORK

EL PASO VA HEALTHCARE SYSTEM

1. **SCOPE:** This Statement of Work (SOW) defines the effort required for the setup, installation, and management of Home Oxygen services and Ventilation, in accordance with Joint Commission (JC) standards, to Veteran beneficiaries serviced by VISN 17. This SOW includes the associated program management, human engineering, and logistic support planning requirements. The use of the terms

“beneficiary”, “Veterans”, “Patients”, and “Patient” are used interchangeably and refer to the recipient of required supplies, equipment, and incidental services required under the contract. It is anticipated that one firm-fixed price Indefinite Delivery Indefinite Quantity contract will be awarded in order to ensure coverage to all locations.

1.1 **BACKGROUND:** The acquisition of Home Oxygen services is being initiated to provide Home Oxygen services to Veteran beneficiaries serviced by VISN 17 for only El Paso VAMC. VISN 17 does not have the capacity to provide these services, so a contract has been sought for the provision of home oxygen and all associated products and services.

1.2 **LOCATIONS:** All services shall be performed in the veteran's place of residence or in a nursing home housing the veteran. The geographic area of service shall be all patients serviced by VISN 17, including catchment areas, regardless of where Patient resides. The equipment needs are subject to change as determined by the prescribing physician. Contractors shall have a facility or resources physically located in the geographic area in which they shall provide service. Non-territory requests will be required from time to time, and the Contractor shall accept these "non-territory" veterans at that

Contractor's awarded price. VA reserves the right to assign these Patients to any contractor. The geographical boundaries described herein have been determined as the areas of responsibility/jurisdiction for each VA Health Care System (VAHCS).

For each listed VAHCS, Contractor shall provide setup, installation, and management of Home Oxygen and/or Ventilation services to any Patient that are treated at the main VAHCS Medical Center (VAMC) and all Community Based Outpatient Clinics (CBOCs) and Outpatient Clinics (OCs) supported therein (Clinic of Jurisdiction/Primary Service Area COJ/PSA), regardless of their physical location. The listing of counties in the PSA for each VAHCS does not exclude the provision of services in other counties.

This includes Patients who reside near bordering state's catchment areas but prefer to be seen by a VISN 17 VAHCS. Some counties are served by more than one VAHCS.

A. EL PASO VA HEALTH CARE SYSTEM (EPVAHCS):

VAMC: 5001 N Piedras, El Paso, TX 79930

COUNTIES IN TEXAS: Culberson, El Paso, Hudspeth, Reeves

COUNTIES IN NEW MEXICO: Dona Ana, Eddy, Grant, Lincoln, Luna, Otero, Sierra

2. SERVICE SPECIFICATIONS:

2.1 VETERANS SERVED: VISN 17 currently serves an estimated 3,000 oxygen-using Patients. The volumes or amounts shown in the Contract Line-Item Numbers (CLINS) are estimates only and impose no obligation on the VA. The contract shall be for the actual requirements of the VA as ordered by the VA during the life of the contract. The Contracting Officer's Representative (COR) or designee will provide (via encrypted email and fax) the contractor with notification to initiate individual Patient service requirements, including the Patient's oxygen prescription, equipment, supplies and services to be provided including date and place of delivery. The Contractor shall confirm receipt (via encrypted email and fax) of the request within one (1) working hour of notification. Per Facilities discretion the COR or designee will also provide (via encrypted email and fax) notification if VA owned equipment is to be provided. The

COR or designee will also provide notification (via encrypted email and fax) to the contractor of VA initiated discontinuation of service. The discontinuation notifications will be made (via encrypted email and fax) within 24 hours. The written documents will include the authorizing official's signature, electronic or written.

2.2 INITIAL SETUPS: Initial set-ups are considered to be those beneficiaries who do not already have a VA authorized oxygen therapy delivery system or ventilator. Two ventilators shall be delivered to each patient home when prescribed.

- A. Contractor shall have a policy statement and program in place for Patient evaluation. VA medical staff evaluation is required to ascertain if the Contractor is able to care for each individual patient and determine if that patient is suitable for care in a home setting, immediately a home setting. Evaluations shall occur prior discharge from the hospital. The results of the evaluation will be provided to the local VA Prosthetics Department, who will then notify the COR, Patient, and Contractor.
- B. Initial setup(s) for Home Oxygen Patients and Ventilator Patients shall be performed by the Contractor's certified respiratory therapist (CRT) or registered respiratory therapist (RRT) or Registered Nurse (RN) that is licensed in accordance with the governing standards of where the services are to be provided. A qualified service technician can be substituted for a CRT, RRT or RN for the set-up of Home Oxygen only. Staff performing ventilator setup shall arrive at the home 1 hour from the receipt of evaluation (preferably before the patient arrives) and shall perform ventilator setup immediately upon patient and caregiver arrival. Caregiver education shall be provided by the Contractor on the specific

supplies or equipment required by evaluation and performed prior to discharge and concurrently with setup. Setup of Home Oxygen includes setting up and ensuring the appropriate oxygen system is operational, instruction and training of Patient and/or caregiver, and home environment safety check.

2.3 ONGOING SERVICES: The contractor shall perform the following tasks:

- i. Home visits shall be performed monthly by the RRT/CRT/RN for all Patients that utilize the ventilator either continuously, for nocturnal concerns, or for intermittent ventilation.
- ii. Home visits shall be performed within 72 hours of setup and quarterly by the RRT/CRT/RN for all Patients that utilize home oxygen services.
- iii. Documentation shall be provided (via encrypted email and fax) to the ordering facility's COR documenting a thorough review of the Patient's equipment, to include all equipment records, and any re-education of the patient and/or caregiver, if necessary.
- iv. Documentation shall be provided (via encrypted email and fax) to the ordering facility's COR for all home visits within five (5) business days of the visit.
- v. Patient or caregiver education shall be performed on the proper utilization for the issued equipment to include the following:
 - a) Proper equipment usage
 - b) Equipment function and operation system
 - c) Equipment knobs, controls, buttons, outlets, and inlets
 - d) Equipment power source: electric, battery, compressor air, oxygen, and UL approved
 - e) Proper utilization of oxygen with the prescribed ventilator
 - f) Troubleshooting the equipment and system alarms
 - g) Equipment and equipment settings that have been prescribed
 - h) Proper equipment exchange/replacement, for example: ventilator tubing/circuit
 - i) Proper utilization of a Passy Muir Valve (PMV) Speaking Valve while in use with the ventilator
 - j) How to attach the resuscitation bag to the oxygen source
 - k) How to complete the home ventilator monitor record
 - l) Emergency Procedures and how to respond to:
 - 1) Power failure
 - 2) Equipment failure
 - 3) Ventilator users and their caregivers must be prepared for equipment failure, disconnects, and power outages, especially if using 24-hour ventilation
 - m) Practicing regular safety drills helps prepare for emergencies
 - n) Keeping a manual resuscitator, such as a bag valve mask (Ambu bag).
 - o) Infection control and Patient supply storage
 - p) Cleaning or exchanging the oxygen tubing, ventilator tubing/circuits, and humidifier

- 1) Cleaning or exchange of the resuscitation bag and supplies
 - 2) Cleaning or exchange of all equipment and accessories
- A. Provide continuing education in use as needed or directed by a licensed and privileged Department of Veteran Affairs Physician. All education material provided by the Contractor shall be initially reviewed and approved by the Veteran's Affairs Pulmonary or Respiratory Chief/ Director/Supervisor or designee within the Pulmonary/Respiratory Section. Any changes to educational materials will need to be reapproved prior to providing the aforementioned documentation to Patients.
- B. The Contractor shall provide a signed document (via encrypted email and fax) to the ordering facility COR verifying the following:
- 1) Patient has a safe home environment in accordance with Joint Commission standards.
 - 2) Patient received proper education and instructions
 - 3) Competency has been accomplished with the Patient and caregiver on the proper use of the ventilator, oxygen equipment, and other home medical equipment upon initial set up, and re-verified annually.
- C. The Contractor shall ensure all equipment contains an adhesive type label containing the vendor's name and emergency 24-hour toll-free phone number. This label shall be placed on the equipment in an area that is viewable to Patients and/or caregivers at all time. The Contractor shall provide Patient a document listing toll-free phone number for routine resupply of oxygen cylinders and supplies.
- D. The Contractor shall provide and post on all entrances into the residence, a sign stating "Warning Oxygen in Use, No Smoking" or other verbiage that No Smoking is allowed due to oxygen being present and document that the Patient/care giver is instructed in the safe use of oxygen and equipment per OSHA regulations. Specified sign shall be no smaller than 4" X 6".
- E. The Contractor shall provide the initial set-up the same day when the prescription is received by 3:00 PM in the local time zone to include weekends and holidays; this shall also apply to service calls. The VAMC reserves the right to obtain the supplies and service from another source and to charge the contractor with any excess cost which will result therefrom, if the contractor is unable to meet required response time.
- F. The Contractor shall provide initial setup within 24 hours when prescription is received after 3:00 PM in the local time zone to include weekends and holidays. This shall also apply to service calls.
- G. The Contractor shall have a staffed branch office or available resources located within 35 miles of each medical center. Branch offices will stock additional

equipment for emergency replacement, as well as maintain staff available to respond to emergency service calls.

- H. The Contractor shall bill for mileage required for services on a rate-per-mile basis according to the following criteria:
 - a. Trip Charge Area A: 0-50 miles from nearest Contractor office
 - b. Trip Charge Area B: 51-100 miles from nearest Contractor office
 - c. Trip Charge Area C: 101-200 miles from nearest Contractor office
 - d. Trip Charge Area D: 200+ miles from nearest Contractor office

- I. Once the VA places an order for home oxygen services with the Contractor, **time is of the essence**. The Contractor's failure to deliver against an order within the required time will result in the VA obtaining home oxygen services from another source. Any costs in excess of contract pricing for services provided will be billed to contractor or credited to next invoice at the discretion of the ordering facility.

- J. The Contractor shall coordinate any modifications or preparations required to be made to equipment with patient caregiver and shall make all modifications and preparations before the Patient arrives home from the hospital. Other items that the Contractor shall prepare ahead of time include:
 - i. Establishing designated Customer Service support phone line for Patients to call for in home assistance
 - ii. Posting all emergency numbers by each telephone

 - iii. Marking the circuit breakers and fuses

2.3 ENSURE HOME REQUIREMENTS ARE PRESENT:

- 1. Upon initial setup the contractor shall ensure the home environment will support all requirements of the equipment being provided including:
 - a. Proper electrical requirements are present.
 - b. Appropriate heating and/or air conditioning, if applicable
 - c. Hot and cold running water
 - d. Spaces for cleaning and storing equipment

- e. General conditions and cleanliness
 - f. Adequate door size
 - g. Steps/need for ramps, etc.
 - h. Availability of ambulance/paramedics and hospital
 - i. Availability of a telephone
 - j. Presence of operational smoke detector(s)
 - k. Presence of operational fire extinguisher(s)
 - l. Presence of fire evacuation plan
2. The Contractor shall notify the COR or their designee by telephone while in the Patient's home, if any alteration to the Patient's home is necessary to accommodate the oxygen equipment, including electrical work. If the Patient's home's electrical system is not sufficient, the Contractor will facilitate alternative oxygen system, if deemed appropriate by the COR or their designee. Any alteration to the Veteran's residence shall be the responsibility of the Veteran.

2.4 PERIODIC EQUIPMENT EVALUATION: The Contractor shall have a CRT/RRT/RN visit the Patient to reassess equipment compliance and educational needs for Home Oxygen Patients at least once every 90 days and once every 30 days for Patients on ventilators

- A. The Contractor shall develop a report, signed and dated by the Contractor staff and the Patient/care giver and a copy shall be left with the Patient. The reports shall be legible and attached to the invoice. All reports shall be submitted to the COR or designee in alphabetical order, within five (5) business days of the service. The written report shall include at a minimum the following data:
 - i. Name and Patient ID to be assigned by facility of Patient using the equipment.
 - ii. Monitor compliance on prescription (LPM, hours per day)
 - iii. Type of concentrator and hours on concentrator
 - iv. Inspection results of liter flow rate in monitoring Patient compliance (as compared to prescription).
 - v. Inspection compliance of filters (exchange or clean by Patient) according to manufacturer's guidelines
 - vi. Follow-up education and/or reinforcement of compliance documented.
 - vii. Revised plan of service as needed.
 - viii. The Contractor shall provide documentation (via encrypted email and fax) of the last visit date, calculated number of expected monthly usage hours and the actual monthly hours of usage based upon the Patient prescription and the Patient last visit to the COR or designee.
- B. If the Patient does not receive a reassessment of equipment every 90 days, the Contractor shall provide documentation (via encrypted email and fax) to the COR or designee identifying the reason a home visit was not made (Example:

Initial set up completed March 1st, Patient shall have a follow-up home visit no later than June 1st).

- a) If the Contracting Officer determines that the Contractor has not made valid and documented attempts to contact the Patient for set up and/or deliveries, the Government reserves the right to call in third party to provide said setups and/or deliveries in the

Contractor's place, and shall bill the Contractor all excess costs for covering the missed requirement, if the contractor fails to perform for any due month.

- C. Serial Numbers for the rented equipment shall be the Contractor's responsibility and kept on file in contractor's main office.

2.5 EMERGENCY SERVICES:

1. Emergency services are for medical equipment provided to Patients when an equipment malfunction or natural disaster may threaten a Patient's health. The Contractor shall provide to the Contracting Officer a written emergency management plan, in compliance with Joint Commission standards. This emergency action plan shall address continuity of services for all patients in the affected region. The Contractor and each VAMC shall develop a joint emergency call list for afterhours sentinel event notification.
2. The Contractor shall provide emergency maintenance 24 hours per day/7 days a week. The Contractor shall provide a document listing the emergency telephone number to the Patient at the time of set up.
3. The Patient will first call the Contractor in an emergency equipment situation as described in the previous sentence. The Contractor shall have a well-established communication system, providing 24-hour emergency services and the ability to provide services at the Patient's home within one (1) hour of a call. Person receiving the call shall be a certified respiratory therapist (CRT) or registered respiratory therapist (RRT) or relay the call to a CRT or RRT for response.
4. The Contractor shall ensure all Patients have at minimum a non-electrical oxygen supply to last three (3) times the Contractors' response time to a call. The minimum supply shall take into account each Patient's prescription flow-rate and distance from the Contractors location, and so actual supply levels may differ from Patient to Patient, as long as each Patient has oxygen supply to last a minimum of three (3) times the contractors' response time. If the Contractor is unable to respond to an emergency service call within one (1) hour, the Contractor shall be responsible for making arrangements with another supplier, who meets all Joint Commission standards, to provide oxygen at the Contractor's expense. A written explanation (via encrypted email and fax) of why the Contractor was unable to respond to the emergency shall be provided to the COR or designee within two (2) business days. The cost of backup systems, backup oxygen, and backup equipment shall be borne by the Contractor. If H or M size oxygen cylinder is used for backup, the Contractor shall furnish an H or M size oxygen cylinder stand for each H or M size oxygen cylinder. Liquid oxygen supply shall be considered backup oxygen; however, the

oxygen supply shall be maintained at a minimum of three times the Contractor's response time.

5. In the event of disaster, natural or otherwise, the Contractor shall notify the COR or their designee within 24 hours if services covered under this contract may be affected.

2.6 PREVENTIVE MAINTENANCE: Contractor shall provide service and preventive maintenance on all equipment as recommended by the manufacturer. Preventive maintenance shall only be performed by a certified service technician that has received the approved training.

The Contractor shall immediately replace equipment for which there are no replacement parts available or for which there are no certified service technicians available.

The Contractor shall deliver maintenance records monthly, or as extraordinary problems arise, to the COR. Contractor shall provide all documentation with signatures and dates.

2.7 MANUALS: The Contractor shall provide the Operation and Service manual to the Patient or caregiver. The manual shall contain information on operation, maintenance, and troubleshooting for clinicians, users, caregivers and service technicians. Contractor shall provide to the Government, one (1) copy of the Operation and Service manual for each type of equipment.

2.8 DEMURRAGE CHARGES: The Contractor shall provide cylinders without assessing demurrage charges on the Government. The Contractor's free loan period of cylinders shall not exceed the term of the contract.

2.9 HIGH RISK SMOKERS: The facility will notify the Contractor of all identified High Risk Smokers. The Contractor shall notify the COR or designee of High Risk Smokers that they identify in the home via encrypted email and fax within one (1) day of the home visit. Contractor notification to each

COR or designee shall consist of contractor's written report/form and shall contain at a minimum Veteran's name and last four (4) numbers of their social security number shall be clearly documented, and what precautions were provided to the Patient (i.e. safety precautions, etc.). High-risk patients are patients who exhibit unsafe clinical or behavioral traits involving oxygen and smoking, such as; attempting to hide their smoking materials or activities from staff, having a history of non-compliance with smoking rules; or smoking in a patient sleeping room or other areas designated as non-smoking areas.

2.10 PATIENT TRAVEL:

1. The Contractor shall coordinate all home oxygen and durable medical equipment with incidental services for veterans who travel within the geographical area covered by this contract. Patients shall be instructed by the Contractor and VA staff to notify the Contractor and the VA resident facility at least two (2) weeks before intent to travel and four (4) weeks if they are permanently relocating. Patient will be responsible for coordinating transportation of oxygen/equipment with their respective airlines.
2. Veterans covered within the purview of this contract will be authorized, excluding medically related travel, a maximum of 30 days travel, with a maximum of 2 set-up charges within one calendar year from the latest prescription date. Subsequent to

this, any other costs will be the Patient's responsibility. Those other costs will be negotiated and settled between the Patient and the Contractor.

3. The Contractor shall provide veterans traveling within the regions covered by the contract, as defined by Section 1.2, all oxygen services hereunder at the contract rate utilizing contractor

furnished equipment only. The Contractor shall provide equipment setup by the Contractor's licensed CRT/RRT/RN at designated travel destinations for Veterans receiving care at a covered geographic area within VISN 17.

4. When the Veteran is temporarily traveling/relocating, outside of the contracted area, the

contractor shall coordinate oxygen requirements at the same contract rate (billed to the Veteran's main VAMC) if that contractor has a subsidiary office located at the temporary destination. If not, the resident VA facility will coordinate with the VAMC nearest the veteran's destination to make these arrangements.

5. When the Veteran is permanently relocating to any area not covered under this contract, the Contractor shall:
 - a. Instruct the patient that they are responsible for notifying the current resident facility 30 days prior to the permanent relocation
 - b. The contractor shall provide the Veteran with up to a 90-day supply of Oxygen/Ventilator Supplies or until such time as the destination VAMC enrolls the patient into the Pulmonary/Home Oxygen Clinic and the destination facility (or contracted vendor) provides their equipment (unless other arrangements/agreements have been made between the two VAMCs), whichever occurs first. The destination VAMC must enroll the Veteran as soon as reasonably possible (e.g. < 30 days in accordance with VA Clinics "Waits and Delays" measure).
 - c. Upon arrival at the destination VAMC, any equipment that came with the patient and that is owned by the resident facility or Contractor shall be returned by the Contractor to the resident facility or to the Contractor. Any cost incurred in the shipping/handling is the responsibility of the resident VAMC.
6. Travel outside the continental United States is not covered under this contract. Veteran will be responsible for all travel arrangements and for obtaining oxygen services when traveling outside the United States.

2.11 PLAN OF SERVICE: The Plan of Service will be developed by appropriate VA clinical staff at each facility and the Contractor's Respiratory Care Practitioner (RCP), in accordance with the Plan of Care and the prescription provided by the VA. Prescription changes must be authorized by a VA Provider.

2.12 COMMUNITY NUMBERS: The Contractor shall provide the local Power Company, Telephone Company, and Fire Department a letter for special consideration within 24 hours of the initial setup and delivery of Home Oxygen Services. This letter shall request that this Patient be placed on the priority list to restore or respond in the event of an emergency or failure of any source. The Contractor shall provide this letter to the COR or designee for approval within 30 days of this contract award date. The Contractor shall also provide a

magnet no smaller than 3 ½"X 4" with emergency numbers which include police department, fire department, ambulance, doctor, and VAMC number to all patients.

2.13 DELIVERY AND DISCONTINUATION OF EQUIPMENT AND SUPPLIES: The Contractor

shall promptly schedule appointments with Patients to initiate set ups and deliveries. Deliveries shall not be left unattended at the Patient's home. If the Patient fails to meet two (2) consecutive appointments, the Contractor shall notify (via encrypted email and fax) the COR or their designee within 24 hours of the second missed appointment. The COR or their designee will contact the Patient and a corrective action plan will be implemented. COR will notify (via encrypted email and fax) the Contractor of any changes. If the Contractor has not documented valid attempts to contact the Patient for set ups or deliveries, the Government reserves the right to call in a third party and bill the Contractor. The Contractor shall not be paid for those services during the billing period if services are not rendered.

2.14 DELIVERY SCHEDULE: Contractor shall develop a delivery schedule for service, equipment, and supplies with each Patient following receipt of the facility order.

2.15 SERVICE OF EQUIPMENT:

1. The Contractor shall furnish, install and service all equipment and supplies ordered under this contract, including ancillary disposable ventilator-related equipment as determined to be required by evaluation. All disposable supplies shall be new and unused. A label with the Contractor's name and emergency telephone number, where they can be reached 24 hours/day, shall be affixed to all equipment.
2. The repair/maintenance of all equipment by the Contractor shall be performed by a competent professional familiar with nature of the equipment involved and fully qualified under the laws of the State in which the services are being rendered. Provision of all equipment shall be consistent with local Fire and Safety Codes in the respective area of the State and shall conform to National Fire Protection Association (NFPA) 99/101 (Standard for Health Care Facilities/Life Safety Code). The Contractor shall provide a home environment safety/emergency contact number checklist to be completed, then signed by the veteran or his/her caregiver and retained in the Patient account folder. The Contractor shall service all equipment at the manufacturer recommended intervals. The Contractor shall conduct a check of the concentrator using a certified oxygen analyzer that is calibrated according to the manufacturer standards. The Contractor shall perform maintenance on all equipment according to the equipment

manufacturer's guidelines. The Contractor shall change compressor inlet pre-filters and compressor inlet bacteria filters according to the manufacturer recommendations. The Contractor shall test the alarm battery at each maintenance check, change as indicated, but at least annually. The Contractor shall track and document maintenance of equipment in accordance with manufacturer specifications and provide these records for review upon request. Contractor shall furnish parts and labor for all maintenance and repairs. The Contractor shall have recall procedures for equipment and supplies.

3. The Contractor shall not change or alter a Patient's oxygen prescription or equipment requirements without a new prescription from the Patient's VA physician.

2.16 CONTRACTOR VISITS: The Contractor shall visit beneficiaries' residences in performance of this contract by appointment only between the hours of 8:00 AM and 8:00 PM, seven days per week, exceptions will be made in the cases of emergencies. The Contractor shall schedule the appointments to the Patient's home at least 48 hours prior to the appointment. On each scheduled setup/delivery the Contractor shall retrain the Patient on the use and care of the equipment and supplies. When conducting home visits, the Contractor's representatives shall present a professional appearance and adhere to the following as a minimum:

1. An ID badge shall be affixed to clothing above the waist with the Company name, employee name, and photograph to the front and clearly visible.
2. Shoes shall be clean and in good condition (open toe shoes are not acceptable).
3. Shirts, blouses, etc. shall be uniform and contain the companies name and/or logo.
4. Slacks or khakis shall be worn. Blue jeans are not allowed.
5. Mid-calf dress slacks or trousers shall not be denim, reveling, provocative, spandex or similar tight-fitting fabrics
6. Socks, stockings, or hosiery shall be worn at all times.
7. Skirts shall be at or below knee length.

2.17 EXCESS DELIVERY: The VA will not authorize payment on the delivery of excess supplies or equipment; excess deliveries are those provided without prior authorization by the VA.

2.18 ASSESSMENT REQUIREMENTS:

1. The Contractor shall perform an assessment of the Patient's home and environment, at least every 90 days (or if required due to Plan of Service changes) in accordance with Joint Commission

accreditation standards and maintain documentation of assessments in the individual Patient file or folder.

2. The Contractor shall notify the COR or their designee during the home visit if the Contractor's staff determines that the presence of oxygen in the home presents such a danger that the oxygen should be removed, or in the case of an initial set-up, not placed in the home. Unsafe conditions may include, but are not limited to, fire safety hazards, oxygen safety hazards, Patient abuse, or any instance that places the Patient or Contractor's staff in immediate danger. The Contractor shall contact the COR or designee by phone during the home visit and furnish (via encrypted email and fax) written documentation of the safety hazard to the COR or their designee within five (5) business days of the incident.
3. The Contractor shall document and report (via encrypted email and fax) to the COR or their designee, within five (5) business days of the service, any Patient who is non-compliant with safety guidelines set forth in the education and orientation material or whose behavior poses a risk of self-harm or harm to others (i.e. smoking while on oxygen) despite warnings and ongoing educational interventions.
4. The Contractor shall check the adequacy of the electrical outlets in the Patient's home and report unsafe conditions to the COR or their designee via phone call during the home visit. The Contractor shall be liable for any unsafe electrical conditions caused by the Contractor. Any alterations to the veteran's residence will be the responsibility of the veteran. If the COR or their designee decide that the ordered equipment cannot be safely installed, the Contractor shall provide an alternative oxygen delivery system after approval until new prescription can be obtained.
5. The Contractor shall verify the presence of working smoke alarms and instruct the Patient to test all smoke alarms on a monthly basis and include this verification in the documentation of assessment. The Contractor shall document (via encrypted email and fax) any home where smoke alarms are not present and fully functional, the Contractor shall provide this notification to the COR or designee within five (5) business days of the service.

2.19 DISCONTINUATION OF SERVICE:

6. The Government will notify (via encrypted email and fax) the Contractor in the event of an order to discontinue oxygen service to any Patient covered under this contract. Payment will be pro-rated based upon the notification date of discontinuance of service. The Contractor shall notify the COR or designee within next business day upon discovering a Patient is no longer available

for services (i.e. deceased, moved out of the service or contract coverage area, etc.). Payments will be prorated based on dates of service provided.

7. The Contractor shall remove equipment from the Patient's residence at the earliest possible time but no later than five (5) business days after discontinuation of service unless approved by COR or designee. The date and time of equipment pickup shall be coordinated with the Patient (if relocated) and/or next of kin and/or significant

other. The Contractor shall honor Patient's or family's requests to pick up equipment before or after funerals or family gatherings relative to Patient funerals.

8. Any and all documentation related to the Patient record during the duration of this contract is the property of the VA and shall be returned by the Contractor to the facility's COR upon the termination or non- renewal of this contract.

2.20 PATIENT EDUCATION REQUIREMENTS: The Contractor shall provide education to each veteran at the time of set-up and assess the need for reinforcement during visits. This information is to be presented verbally in demonstration and material covered shall be in written form to be left with the Patient/care giver. The written material shall be in English as well as the foreign language of the Patient, in the event the Patient does not speak English. The Contractor shall present all Patient education material, in written form, to the COR within thirty (30) days of contract award. The Contractor, as directed by COR or designee shall implement any new or revised education material. The VA will determine whether the contractor shall use their forms or forms supplied by the VA for documentation of education services provided to Patients.

2.21 WARNINGS:

1. The Contractor shall provide educational and warning information for Patients, their families, or caregivers on the hazards of smoking while oxygen is in use. The warning materials shall be provided upon initial delivery and every 90 days thereafter. The checklist used by the Contractor for medical gas follow-up services shall, at minimum include:
 - a. No Smoking signs provided and posted
 - b. Veteran instructed to test all smoke alarms monthly, and smoke alarm sounds when tested and provide how to obtain one. Veteran instructed to remove the cannula, shut off the oxygen supply, move 15 feet from the oxygen source, and wait for the oxygen to dissipate prior to smoking
 - c. Veteran, family or cohabitants given educational material regarding the hazards of smoking and using an open flame near oxygen.
 - d. Contractor shall check for fire extinguishers and/or provide guidance on how to obtain one.

2.22 PATIENT RIGHTS & RESPONSIBILITIES: The Contractor shall provide Veterans with a copy of VA Patient Rights & Responsibilities and any applicable information concerning advance directives during initial setup. The Contractor shall provide documentation (via

encrypted email and fax) that the Patient/care giver is instructed in accordance with Joint Commission standards to include how to contact the Joint Commission.

2.23 FALL PREVENTION: The Contractor shall provide Patient education or re-education on how to prevent falls in the home related to oxygen equipment and supplies (i.e. oxygen tubing is a fall hazard) on initial set up and every 90 days thereafter. The Contractor shall provide documentation (via encrypted email and fax) if it becomes known to the Contractor that the Patient has recently fallen.

2.24 PERIODIC PERFORMANCE REVIEW REPORT: The Contractor shall provide a written, quarterly report addressing all Joint Commission Standards for improving organizational performance (The Joint Commission standards may be accessed at www.JointCommission.org).

The Contractor shall submit their Periodic Performance Review for contracted services to the COR or designee via encrypted email or fax within 90 days of the end of base or option year annually. The Contractor shall assess and score each Joint Commission standard and element of performance that is applicable to the contracted services by entering a self-assessed score. Any noncompliant findings or gaps in service identified on the self-assessment shall require a plan of action to correct as part of the Periodic Performance Review submitted to the COR or designee.

2.25 INCIDENT REPORT: The Contractor shall report special incidents found or occurring during a home visit; to include finding Patients in need of emergency medical assistance, safety hazards that do not fall into the category of presenting immediate life-threatening danger to the Patient or Contractors staff, inability to contact a Patient within a reasonable period of time, and any other incident meeting the Contractors written policy for incident reporting according to Joint Commission accreditation standards. All reports, containing confidential Patient information, shall be provided to the COR via encrypted email using a standard encryption scheme, such as PKI and fax within 24 hours. Life-threatening situations (i.e. 911, police, etc.) shall be reported to the proper authorities immediately. The Contractor shall maintain a file containing all incident reports at its place of business.

2.26 CUSTOMER SATISFACTION REPORT: The Contractor shall collect satisfaction data from contracted Patients and their families on a quarterly basis in accordance with Joint Commission standards. A copy of survey results shall be submitted to COR or designee in Quarterly reports via encrypted email and fax. The quarterly report is due to the COR within the 5th working day at the conclusion of the quarter. The reporting quarters are as follows: October 1st through December 31st, January 1st through March 31st, April 1st through June 30th and July 1st through September 30th.

2.27 INFECTION CONTROL REPORT: The Contractor shall collect, trend, and report on data related to the Contractor's Infection Control Program to the COR or designee on a

quarterly basis for each contract performance period via encrypted email and fax. The quarterly report is due to the COR within the 5th working day at the conclusion of the quarter.

2.28 PERFORMANCE IMPROVEMENT REPORT: The Contractor shall collect, trend, and report on important processes and outcomes data related to Patient care and organizational functions to the COR or designee on a quarterly basis for each contract performance period via encrypted email and fax. The quarterly report is due to the COR within the 5th working day at the conclusion of the quarter

2.29 CONTRACT USAGE REPORT: Contractor shall provide a monthly electronic report detailing contract usage by each VISN 17 Facility. Contractor shall provide to each VISN 17 Facility's COR or designee their respective facility's electronic report NLT the 15th of each month. The electronic report shall include the total units per CLIN and total dollars invoiced by CLIN. Contractor additionally shall submit a composite report of each facility's usage, by facility, to include the total number of unique Patients, the total number of units used by contract CLIN, and the total dollars invoiced by CLIN number to the VISN COR monthly, NLT the 15th of each month.

2.30 FALL PREVENTION REPORT: The Contractor shall collect data and provide a report on falls and outcomes through conversations with the patient and caregivers on a quarterly basis for each contract performance period. The report shall indicate when the incident occurred, were injuries involved, possible causes of fall (i.e. medication, tripping hazard, etc.), as well as corrective action plans, and patient education conducted. This report shall be provided to the COR or designee via encrypted email and fax. The quarterly report is due to the COR within the 5th working day at the conclusion of the quarter

2.31 HOME VISIT REPORT: Contractor shall provide a report on compliance with the 90-day home visit requirement for Home Oxygen Patients and 30-day home visit requirement for Patients using Ventilators. Report shall be inclusive to all veterans serviced under the contract. Data shall include date of last home visit, due date of next home visit, incomplete home visits including documentation and action plan. Report shall be compiled on a monthly basis and be provided NLT the 15th of each month to the COR or designee of each facility via encrypted email and fax.

2.32 EMERGENCY PATIENT SAFETY REPORTS:

1. The Contractor shall provide the following emergent Patient safety reports throughout the contract period (initial notification shall be within one business day of when the

Contractor is aware of the event or issues) with a follow-up official report within 5 business days unless specified below.

2. The Contractor shall inform the COR or their designee of a sentinel event (as defined by Joint Commission) via encrypted email and fax that occurs during the performance of this contract that involves the patients serviced under this contract.
3. All beneficiaries will have the right of refusal of service. In the event a Patient refuses service or orders the equipment to be removed from the home, the Contractor shall notify the COR or designee for authorization. The Contractor shall also report the specifics of the refusal to the

COR or designee by telephone while in Patient's home. Formal written documentation of this refusal shall be provided to the COR within 5 business days. If the refusal occurs during a home visit, the Contractor's staff shall notify the COR or their designee of the refusal during the home visit.

4. The Contractor shall report suspected incidents of Patient abuse or neglect. Suspected incidents shall be reported to the COR or their designee, as well as to the adult protective agency. The Contractor shall follow all state and local laws in reporting suspected incidents of abuse or neglect.
5. The Contractor shall report non-compliant behavior with fire safety guidelines set forth in the Patient education and re-assessment material and/or behaviors which pose a risk of self-harm or harm to others. Such behavior shall be reported to the COR or their designee during the home visit if the Contractor's staff determines the Patient's non-compliant behavior, within the home environment, is not improving after education on the fire hazard of smoking when on oxygen treatment is provided. Noncompliant behavior and any follow-up actions (i.e. educations) shall be documented.

3. **EQUIPMENT REQUIREMENTS:**

3.1 **SUPPLIES:**

1. The Contractor shall be staffed and have sufficient supplies to render satisfactory and courteous service at all times to the Patient as listed below. The Contractor shall be responsible for the acts

and omissions of its employees, its Sub-contractors or satellite offices and their employees. The Contractor shall ensure sub-contractors adhere to the requirements of this contract. In accordance with the prescription received from the VAMC, the Contractor shall provide the Patient with the following disposable supplies:

- a. Oxygen cannula (including colored cannula/tubing) which is indicated for change at a minimum of every two (2) weeks with a supply in reserve at all times until the contractor's next scheduled visit.

- b. Connectors, swivel connectors, washers, wrenches, oxygen nipple adaptors (Christmas trees) provided as needed.
- c. All masks types (when prescribed) for change every two (2) weeks with a 30-day supply in reserve at all times until the contractor's next scheduled visit.
- d. 25-50 ft. of oxygen connecting tubing shall be replaced on a 90-day supply with an equivalent section of tubing in reserve at all times until contractor next scheduled visit.
- e. Trachea collar and accessories (i.e. tubing, large volume nebulizer, etc.) allowing for change every three (3) days with a supply in reserve at all times until contractors next scheduled visit.
- f. Humidifiers (both disposable and reusable) and water traps when deemed necessary. The number of humidifiers shall be sufficient to insure that they are not depleted between re- supply visits. The number of traps shall be based on the Patient's flow rate.
- g. Safety holder(s), storage rack(s), and/or an e-cylinder cart shall be provided for all veterans with a prescription for tanks (cylinders) and for use with the back-up system.
- h. FIRESAFE™ Cannula from LifeGas (this item will be provided to the Contractor by the VAMC):
 - i. The Contractor shall install the FIRESAFE™ Cannula devices during contract start-up and during any initial equipment set-ups.
 - ii. The Contractor shall replace the FIRESAFE™ Cannula devices annually with prescription renewal (e.g. renew order for home oxygen therapy).
 - iii. The Contractor shall provide documentation that the Veteran has received and educated on the appropriate use of these devices via encrypted email and fax.
 - iv. Contractor shall provide documentation that the devices are being used properly and that the Veteran understands their intended use via encrypted email and fax.
 - v. Contractor shall provide documentation concerning the annual exchanges of these devices as well as any unscheduled exchanges when the device is found missing via encrypted email or fax.
 - vi. Contractor shall provide two FIRESAFE™ Cannula devices per Veteran only for use on their stationary oxygen system; one at the supply and one at the cannula/mask. No devices are to be used on portable oxygen systems for Veterans using oxygen for migraine headaches only.

3.2 **OXYGEN CONCENTRATORS:**

1. The oxygen concentrators the Contractor provides shall be Underwriter Laboratory (UL) approved and shall at a minimum meet the following specifications:
 - a. The oxygen concentrator shall be electrically powered (120 volts)
 - b. The oxygen concentrator shall contain a battery-operated audible alarm to indicate a power failure
 - c. The oxygen concentrator shall not perform below the manufacturer's specification
 - d. The oxygen concentrator shall contain an hour meter and oxygen concentration indicator (OCI)
 - e. The oxygen concentrator shall be grounded internally or plug into a three-prong wall outlet appropriate for the Patient's home (outlet adaptors are not acceptable).
 - f. Portable oxygen concentrators shall be Federal Aviation Administration (FAA) approved.
 - g. The oxygen concentrator shall have 2 fire safety valves.

3.3 FIVE (5) LPM (LITERS PER MINUTE) CONCENTRATOR:

1. Concentrators the Contractor provides shall meet the following requirements:
 - a. Operate on 120 Volts Alternating Current (VAC), 60 hertz (Hz).
 - b. Have thermal protector for compressor.
 - c. Be double insulated and have a three-prong plug.
 - d. Have pressure compensated flow meter.
 - e. Alarms for the following failures required: Power Failure, O₂ Concentration, and Irregular Pressure.
 - f. Have power failure alarm.
 - g. Shall meet Food and Drug Administration (FDA) Quality Systems Regulations
 - h. Be mounted on wheels for easy movement by Patient/caregiver.
 - i. (QSR) standards.
 - j. Sound level of 60 decibel (db) or less.
 - k. Note: Concentrators shall have oxygen sensing devices.

3.4 TEN (10) LPM CONCENTRATOR:

1. Concentrators the Contractor provides shall meet the following requirements.
 - a. Alarms for the following failures are required: Power Failure, O₂ Concentration (Optional), and Irregular Pressure
 - b. Size: shall vary
 - c. Weight: shall vary (light as possible/easily maneuverable)
 - d. Be double insulated and have a three-prong plug

- e. Be mounted on wheels for easy movement by Patient/caregiver
- f. Shall meet Food and Drug Administration (FDA) Quality Systems Regulations (QSR) standards
- g. Sound level of 60 decibel (db) or less.
- h. Note: Concentrators shall have oxygen sensing devices

3.5 PNEUMATIC POWERED OXYGEN CONSERVING DEVICES:

1. The Oxygen Conserving Device the Contractor provides shall be battery-powered or pneumatic powered device that limits oxygen flow to inspiration only and thereby increase the duration of the supply. Pneumatic units shall appropriately meet the following specifications based on Patient needs:
 - a. Pulse dose from .25 to 6 or higher
 - b. Have easy to read content gauge
 - c. Conservation ratio of 3:1 or higher
 - d. Have continuous flow setting
 - e. Notes: Conserving ratios are based on a breathe rate of 20 breaths per minute (BPM).

3.6 BATTERY-POWERED OXYGEN CONSERVING DEVICES:

1. The Oxygen Conserving Device the Contractor provides shall be battery-powered or pneumatic powered device that limits oxygen flow to inspiration only and thereby increase the duration of the supply. Battery units shall approximately meet the following specifications based on Patient needs:
 - a. Pulse dose from .5 to 6 or higher
 - b. Have easy to read content gauge
 - c. Conservation ratio of 5:1 or higher
 - d. Bolus delivered per breath of at least 10cc per setting
 - e. Have continuous flow setting

3.7 LIQUID OXYGEN SYSTEM:

1. The Liquid oxygen system consists of large reservoir and portable unit that is filled from the reservoir. Standard reservoir holds 110 pounds of liquid oxygen and portable unit holds 3-5 pounds of liquid oxygen. The standard reservoir weighs 65 pounds full, and the portable unit weighs 6-8 pounds full (to include high flow systems). The liquid oxygen system the Contractor provides shall meet the following requirements:
 - a. Reservoir shall have condensation collection tray.
 - b. Shall have quick release valve for easy refilling.
 - c. Flow meter range of 0 to 6 LPM.
 - d. Portable must come with shoulder strap.
 - e. Shall have electrical or mechanical content indicators.

3.8 LIQUID SYSTEM WITH CONSERVING DEVICE:

Liquid system with conserving device consists of large reservoir and portable unit that is filled from the reservoir. Standard reservoir holds 110 pounds of liquid oxygen and portable unit holds

0.9 pounds of liquid oxygen. The standard reservoir weighs 165 pounds full, and the portable unit weighs 4 pounds full. The liquid oxygen system the Contractor provides shall meet the following requirements:

- a. Reservoir shall have condensation collection tray.
- b. Shall have quick release valve for easy refilling.
- c. Shall have flow settings of 1-6.
- d. Portable shall come with shoulder strap and belt loop holder.
- e. Shall have electrical or mechanical content indicators.

3.9 OXYGEN CYLINDER REFILL STATIONS:

1. Oxygen Cylinder Refill Stations the Contractor provides shall be a minimum of 5 LPM, fill any size cylinders with capability for continuous or pulse dose.
2. Oxygen the Contractor provides shall be United States Pharmacopoeia (U.S.P.) oxygen

3.10 PORTABLE CONCENTRATOR: Portable Concentrator (FAA Approved) the Contractor provides shall be a minimum of 3 LPM, weight 20 pounds or less, AC/DC capability, 12 hours battery life, continuous and pulse doses (40 ml or greater) flow option.

3.11 BACKUP SYSTEM: The Contractor shall provide Veterans with a prescription for an oxygen concentrator with a backup system consisting of a compressed gas source and regulator with stand, humidifiers, and cannulas/masks for use during the event of a power failure or mechanical problem with electrical home oxygen equipment. The cost of replacement for the above-mentioned backup system, including equipment damaged, lost or misplaced not through Patient's negligence, shall be borne by the Contractor. The Contractor shall provide documentation (via encrypted email and fax) if the Patient declines the oxygen back-up system, to include the reason for declining backup system and the veterans signature. Notification (via encrypted email and fax) shall be provided to COR or designee within five (5) business days of the veteran declining any prescribed equipment or contractor's inability to deliver the prescribed equipment.

3.12 UNDERWRITERS LABORATORIES (UL) APPROVED EQUIPMENT: The Contractor shall

ensure all electrically powered equipment used in performance of this contract is UL approved and in compliance.

3.13 CONTRACTOR-FURNISHED EQUIPMENT: The Contactor shall maintain all Contractor- furnished equipment per manufacturer's specifications. The Contractor shall repair or replace Contractor- owned equipment at no cost to the Government.

1. The VAMC will not pay for the Contractor's lost or damaged equipment provided under this contract unless circumstances as reviewed by the Contracting Officer are concluded to be the results of willful negligence on behalf of Patients or VAMC employees. The Contractor shall

bear the costs of normal wear and tear of equipment. The VA will not pay for rental of equipment used by an unauthorized individual during the performance of this contract or for equipment that is lost or damaged due to negligence. Such loss or damage is considered to be part of the Contractor's cost of doing business, and the Contractor shall bear these costs. The Contractor shall not pursue recovery of the cost of lost or damaged equipment from Patients, their caregivers, or VAMC employees. The Contractor's sole remedy for lost or damaged equipment shall be as provided for in this paragraph.

3.14 GOVERNMENT-OWNED EQUIPMENT: The Contractor shall return Government-owned equipment to the VA in terminally cleaned condition for repairs, replacement, or disposal as appropriate. Government furnished equipment shall be handled in accordance with FAR 52.245-1 Government Property.

3.15 CYLINDERS:

1. The Contractor shall furnish aluminum cylinders that are in accordance with the Interstate Commerce Commission Regulations, and transport cylinders in accordance with Code of Federal Regulations (CFR) Part 49, U.S. Department of Transportation. Any H or M size oxygen cylinder furnished by the Contractor shall have H or M size oxygen cylinder safety stand at no additional charge to the Government. This stand shall remain contractor owned.

3.16 VENTILATORS:

1. The Contractor shall furnish ventilators as prescribed by a licensed and privileged VA physician/provider. Before a final decision will be made regarding the installation of a ventilator system in a Patient's home, the Contractor's CRT/RRT/RN shall make a visit to assess equipment functionality and the feasibility of supporting mechanical ventilation in the home. The home assessment shall include inspection of the following for compliance with manufacturer specifications and proper functioning:
 - a. Ventilator settings/mode
 - b. Ventilator alarms
 - c. Actual high and low alarm parameters
 - d. Actual tidal volume and rate
 - e. Compliance

- f. Patient pressure
 - g. Breath rate – ventilator
 - h. Breath rate – Patient
 - i. Tidal volume
 - j. Breathing effort
 - k. Inspiratory time
 - l. Oxygen concentration (fractional inspired oxygen (FiO₂) or LPM), if necessary
 - m. Positive End Expiratory Pressure (PEEP), if applicable
 - n. Pressure Support, if applicable
 - o. Humidifier
 - p. Carrying case / bag for filters and consumables.
2. The Contractor shall provide documentation (via encrypted email and fax) to the ordering facility's COR showing that they trained the Patient or caregiver on how to check the battery. The Contractor shall provide the Patient and/or caregiver with enough supplies to ensure that the ventilator tubing/circuits are changed every seventh (7th) day or as per manufacturer's guidelines with two (2) in reserves at all times.
 3. The Contractor shall provide the Patient and family/care giver with training at the Medical Center prior to discharge upon the COR or designee's request, using the particular ventilator that is to be installed in the Patient's home.

3.18 HUMIDIFICATION AND MOISTURE EXCHANGE DEVICE:

1. **The Contractor shall provide the Patient or caregiver with a 30-day supply for the humidification and moisture exchange device, with enough supplies to change every 24 hours or as needed,** and two (2) in reserve at all times. The Contractor shall provide the Patient or caregiver a 30-day supply for a closed system suction catheter to be changed every 24 hours with one (1) in reserve at all times. The Humidification and Moisture Exchange Device shall include the following:
 - a. Suction system shall include swivel adapter with Medium Dependent Interface (MDI) port
 - b. Twelve (12) to fourteen (14) French suction catheters for daily used
 - c. Four (4) Yankauer tips per month with one in reserve at all times
 - d. One (1) resuscitation bag with mask and oxygen tubing to be cleaned by the Patient and/or caregiver every seventh (7th) day with one in reserve at all times for continuous ventilation
 - e. One (1) H or M size oxygen cylinder of oxygen or oxygen concentrator
 - f. One (1) suction pump with suction collection jar, non-sterile gloves, basin, normal saline solution. Four collection jars shall be provided per month, or more as necessary.
 - g. Trachea care supplies/trachea care kit that shall have at least a minimum of a 30-day supply

3.19 STOCK STORAGE: The Contractor shall, upon request by the facility, stock portable equipment systems at the VA to send home with Patients. The Contractor shall, upon request by the facility, stock replacement cylinders, regulators, and oxygen conserving devices for Patients who deplete their portable units during appointments. The Contractor shall coordinate with the Prosthetics and Sensory Aids Service and Respiratory Therapy Services at each facility, for accountability and payment. As authorized, the Contractor shall deliver a portable set-up or refill for Patient discharge at any local facility. The Contractor shall maintain a minimum of (1) 800+ SF storage facility within 35 miles of each VAMC included in the Region. Additional storage facilities at various locations throughout the Region can be maintained at the discretion of the Contractor.

4. REQUIREMENTS AND STANDARDS:

4.1 SITE VISITS: Periodic, unscheduled on-site contractor, home oxygen Patient, and Ventilator Patient visits will be made by COR or designee to monitor the Contractor's performance under this contract. The Contractor shall make available (via encrypted email and fax) all records and documentation necessary during the monitoring visits to the COR or designee. Other visits will be made by the Joint Commission surveyors and the Home Oxygen Coordinator for each facility.

4.2 QUALIFICATIONS OF OFFERORS:

1. Each Contractor branch office or distribution point shall meet or exceed Joint Commission standards.
2. Each member of the Contractor's CRT/RRT/RN staff shall have at least two (2) years of experience in successfully administering basic home oxygen and ventilator services to adult and geriatric Patients. The Contractor shall be responsible for coordinating, supervising and evaluating the services provided.
3. Contractor shall provide staff with documented competency training to deliver prescribed supplies/cylinders/liquid oxygen (LOX) as required to each Patient. The Contractor shall visit all Patients at least every 90 days and all equipment in the home shall be maintained as recommended by the manufacturer. The Contractor shall provide the COR or designee with written documentation (via encrypted email and fax) within one (1) day of the scheduled home visit.
4. Contractor shall adhere to the provision of Public Law 104-191, Health Insurance Portability and Accountability Act (HIPAA) of 1996 and the National Standards to Protect the Privacy and Security of Protected Health Information (PHI).
 - a. The Contractor shall internally maintain a Patient account folder holding all documentation related to the supplies and services provided in compliance with the Privacy Act and Health Insurance Portability and Accountability Act (HIPAA). All Patient files are subject to review by

designated VAMC officials and accreditation surveyors on behalf of the VAMC during accreditation surveys or consultation. At a minimum the Patient folder shall adhere to current Joint Commission standards for Patient record keeping.

5. The Contractor shall develop, maintain, and make available for review, personnel folders for all employees performing under this contract.
6. The Contractor shall provide initial and annual documentation of employee orientation, ongoing employee education, and ongoing assessment of employee competency for all employees involved with the delivery/recovery of equipment covered under this contract according to Joint Commission Standards. The Contractor shall provide copies of personnel files to the facility COR or designee within 14 working days of the date the contract is awarded. Files for all newly hired staff shall be forwarded to the Contracting Officer and the COR or designee within 14 working days of the date of hire.
7. The Contractor shall provide COR or their designee with a list of all employees currently competent to perform delivery/recovery and Patient education services at the time the contract is awarded. COR or their designee will inspect employee files at the time of the inspection of Contractor premises and vehicles. Employee files shall be maintained at the local contract site.
8. The Contractor shall educate, evaluate and document employee education in strict accordance with current Joint Commission accreditation standards.
9. The Contractor shall ensure that only employees that have been properly trained and who have demonstrated competency shall perform equipment deliveries, recoveries, and Patient education on the equipment.

4.3 CONFORMITY TO REGULATIONS: The Contractor shall ensure its employees and subcontractors conform to all regulations, Federal, State and local, governing the performance of contracted services in each state in which performance occurs. VAMC facilities have been designated NO SMOKING areas in their entirety. Individuals found in violation of this no smoking policy shall be subject to a federal citation for disregarding posted safety rules and regulations in accordance with the local VAMC policy. Furthermore, Contractor shall be directed to stop work. Contractor shall notify all of its employees and sub-contractors of this strict enforcement policy.

4.4 TRANSITION PERIOD: At the end of the contract period a transition period will be required during which the incumbent contractor ("Incumbent") shall continue to provide home oxygen supplies and services at the existing contract prices while the Contractor is transitioning over.

1. **Phase In:** The Contractor shall replace all appropriate VA authorized (Incumbent-owned)

equipment presently located in residences of beneficiaries with the Contractor's equipment as soon as possible after award, but not to exceed forty-five (45) days from date of contract award. Contractor shall coordinate with the Incumbent during the transition period relating to the removal of the Incumbent's equipment from the Patient residences. The change-over shall include delivery, setup, and instruction as further specified herein, and shall be accomplished without disruption in supplies and services to the veteran or the VA. The Contractor shall note the transition date of each beneficiary, to include the transfer of responsibility regarding Government Furnished Equipment (if applicable). The billing period will begin on the noted transition date. Payments will be assessed based on the Contractor's established rate and prorated from setup date. Prorated monthly rates are based on a 30-day month.

2. **Phase Out:** In accordance with FAR 52.237-3 Continuity of Services, the Contractor realizes that the services being provided under this contract are vital and must be continued uninterrupted. Upon completion, expiration, or termination of this contract, the Contractor shall not remove any equipment from the beneficiary's residence until replacement equipment has been installed. The Contractor shall coordinate transition of equipment / services with the incoming Contractor as soon as possible, but not to exceed forty-five (45) days from date of contract expiration. If additional transition time is required beyond contract expiration, the Contractor shall be paid on a pro-rated basis at the prices established for the last period of performance. Prorated monthly rates are based on a 30-day month.

4.5 SAFETY REQUIREMENTS: In the performance of this contract, the Contractor shall take such safety precautions as the Contracting Officer or the COR determines to be reasonably necessary to protect the lives and health of all persons affected by this contract. The Contracting Officer or COR will notify the Contractor of any noncompliance with the foregoing provisions and the action to be taken. The Contractor shall, after receipt of such notice, immediately correct the conditions to which attention has been directed. Such notice, when served on the Contractor or his/her representative at the site of the work, shall be followed in writing within one business day. If the Contractor fails or refuses to comply with these safety requirements, the Contracting Officer may (as stated in FAR 52.249-8) issue an order terminating all or any part of the work.

4.6 VEHICLES: The Contractor shall ensure the vehicles used in the performance of this contract are licensed and meet the minimum requirements as mandated by each state/county/city in which performance occurs. All vehicles shall be clearly identified with the contractor's name.

4.7 EVIDENCE OF COVERAGE: Before commencing work under the contract, the Contractor shall furnish the Contracting Officer with a certification from its insurance companies indicating the coverage's for this contract have been obtained and that it may not be changed or canceled without written notice within thirty (30) days to the Contracting Officer.

4.8 INFECTION CONTROL REQUIREMENTS:

1. Contractor shall provide a current plan for surveillance, prevention, and control of infection at time of proposal submission. The plan shall meet or exceed current Joint Commission standards.
2. Contractor shall provide a list of names to the COR or designee of all Patients exposed to communicable diseases by contracted staff during an identified incubation period within 24 hours of identifying this exposure. The type of exposure shall also be identified in the notification.
3. The COR or their designee will consult with VA infection control staff regarding the need to contact exposed Patients and/or complete any needed medical follow-up.
4. The Contractor shall take standard precautions to prevent exposure to blood borne diseases when handling all contaminated equipment/items. Gloves shall be worn when handling items soiled with blood and/or body fluids. Hands shall be washed before and after visiting each Patient and when gloves are removed. Contaminated equipment shall be separated from clean equipment. The Contractor's warehouse shall have clear demarcation between contaminated and clean storage areas. Delivery vehicles, if dirty and clean equipment is transported in the same vehicle, shall have a clearly demarcated area for clean and dirty items. Contractor's procedure for handling the pickup of dirty equipment shall meet or exceed Joint Commission Standards.

4.9 CONTRACTING OFFICER'S REPRESENTATIVE: The Contracting Officer reserves the right to designate a representative to act for him/her in furnishing technical guidance and advice or generally evaluate the work to be performed under this contract. The Administrative Officer for VISN 17 Prosthetic Service Line shall be designated as the Contracting Officer's Representative (COR). Such designation will be in writing and will define the scope and limitations of the designee's authority. A copy of the designation will be furnished to the Contractor after notice of award.

5. INFORMATION TECHNOLOGY SECURITY REQUIREMENTS SECTION

5.1. GENERAL

Contractors, contractor personnel, subcontractors, and subcontractor personnel shall be subject to the same Federal laws, regulations, standards, and VA Directives and Handbooks as VA and VA personnel regarding information and information system security.

5.2. ACCESS TO VA INFORMATION AND VA INFORMATION SYSTEMS

- a. A contractor/subcontractor shall request logical (technical) or physical access to VA information and VA information systems for their employees, subcontractors, and affiliates only to the extent necessary to perform the services specified in the contract, agreement, or task order.
- b. All contractors, subcontractors, and third-party servicers and associates working with

VA information are subject to the same investigative requirements as those of VA appointees or employees who have access to the same types of information. The level and process of background security investigations for contractors must be in accordance with VA Directive and Handbook 0710, Personnel Suitability and Security Program. The Office for Operations, Security, and Preparedness is responsible for these policies and procedures.

- c. Contract personnel who require access to national security programs must have a valid security clearance. National Industrial Security Program (NISP) was established by Executive Order 12829 to ensure that cleared U.S. defense industry contract personnel safeguard the classified information in their possession while performing work on contracts, programs, bids, or research and development efforts. The Department of Veterans Affairs does not have a Memorandum of Agreement with Defense Security Service (DSS). Verification of a Security Clearance must be processed through the Special Security Officer located in the Planning and National Security Service within the Office of Operations, Security, and Preparedness.
- d. Custom software development and outsourced operations must be located in the U.S.

to the maximum extent practical. If such services are proposed to be performed abroad and are not disallowed by other VA policy or mandates, the contractor/subcontractor must state where all non-U.S. services are provided and detail a security plan, deemed to be acceptable

by VA, specifically to address mitigation of the resulting problems of communication, control, data protection, and so forth. Location within the U.S. may be an evaluation factor.

- e. The contractor or subcontractor must notify the Contracting Officer immediately when an employee working on a VA system or with access to VA information is reassigned or leaves the contractor or subcontractors employ. The Contracting Officer must also be notified immediately by the contractor or subcontractor prior to an unfriendly termination.

5.3. VA INFORMATION CUSTODIAL LANGUAGE

a. Information made available to the contractor or subcontractor by VA for the performance or administration of this contract or information developed by the contractor/subcontractor in performance or administration of the contract shall be used only for those purposes and shall not be used in any other way without the prior written agreement of the VA. This clause expressly limits the contractor/subcontractor's rights to use data as described in Rights in Data

- General, FAR 52.227-14(d) (1).

b. VA information should not be co-mingled, if possible, with any other data on the contractors/subcontractors information systems or media storage systems in order to ensure VA requirements related to data protection and media sanitization can be met. If co-mingling must be allowed to meet the requirements of the business need, the contractor must ensure that VAs information is returned to the VA or destroyed in accordance with VAs sanitization requirements. VA reserves the right to conduct on-site inspections of contractor and subcontractor IT resources to ensure data security controls, separation of data and job duties, and destruction/media sanitization procedures are in compliance with VA directive requirements.

c. Prior to termination or completion of this contract, contractor/subcontractor must not destroy information received from VA, or gathered/created by the contractor in the course of

performing this contract without prior written approval by the VA. Any data destruction done on behalf of VA by a contractor/subcontractor must be done in accordance with National Archives and Records Administration (NARA) requirements as outlined in VA Directive 6300, Records and Information Management and its Handbook 6300.1 Records Management Procedures, applicable VA Records Control Schedules, and VA Handbook 6500.1, Electronic Media Sanitization. Self-certification by the contractor that the data destruction requirements above have been met must be sent to the VA Contracting Officer within 30 days of termination of the contract.

d. The contractor/subcontractor must receive, gather, store, back up, maintain, use,

disclose and dispose of VA information only in compliance with the terms of the contract and applicable Federal and VA information confidentiality and security laws, regulations and policies. If Federal or VA information confidentiality and security laws, regulations and policies become applicable to the VA information or information systems after execution of the contract, or if NIST issues or updates applicable FIPS or Special Publications (SP) after execution of this contract, the parties agree to negotiate in good faith to implement the information confidentiality and security laws, regulations and policies in this contract.

- e. The contractor/subcontractor shall not make copies of VA information except as authorized and necessary to perform the terms of the agreement or to preserve electronic information stored on contractor/subcontractor electronic storage media for restoration in case any electronic equipment or data used by the contractor/subcontractor needs to be restored to an operating state. If copies are made for restoration purposes, after the restoration is complete, the copies must be appropriately destroyed.
- f. If VA determines that the contractor has violated any of the information confidentiality, privacy, and security provisions of the contract, it shall be sufficient grounds for VA to withhold payment to the contractor or third party or terminate the contract for default or terminate for cause under Federal Acquisition Regulation (FAR) part 12.
- g. If a VHA contract is terminated for cause, the associated BAA must also be terminated and appropriate actions taken in accordance with VHA Handbook 1600.01, Business Associate Agreements. Absent an agreement to use or disclose protected health information, there is no business associate relationship.
- h. The contractor/subcontractor must store, transport, or transmit VA sensitive information in an encrypted form, using VA-approved encryption tools that are, at a minimum, FIPS 140-2 validated.
- i. The contractor/subcontractors firewall and Web services security controls, if applicable, shall meet or exceed VAs minimum requirements. VA Configuration Guidelines are available upon request.
- j. Except for uses and disclosures of VA information authorized by this contract for performance of the contract, the contractor/subcontractor may use and disclose VA information only in two other situations: (i) in response to a qualifying order of a court of competent jurisdiction, or (ii) with VAs prior written approval. The contractor/subcontractor must refer all requests for, demands for production of, or inquiries about, VA information and information systems to the VA contracting officer for response.
- k. Notwithstanding the provision above, the contractor/subcontractor shall not release VA records protected by Title 38 U.S.C. 5705, confidentiality of medical quality assurance records and/or Title 38 U.S.C. 7332, confidentiality of certain health records pertaining to drug addiction, sickle cell anemia, alcoholism or alcohol abuse, or infection with human immunodeficiency virus. If the contractor/subcontractor is in receipt of a court order or other requests for the

above-mentioned information, that contractor/subcontractor shall immediately refer such court orders or other requests to the VA contracting officer for response.

1. For service that involves the storage, generating, transmitting, or exchanging of VA sensitive information but does not require C&A or an MOU-ISA for system interconnection, the contractor/subcontractor must complete a Contractor Security Control Assessment (CSCA) on a yearly basis and provide it to the COTR.

B.3 PRICE/COST SCHEDULE**ITEM INFORMATION**

ITEM NUMBER	DESCRIPTION OF SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0001	Rental Concentrator with backup system consisting of compressed gas source, regulator, stand (nasal cannula or mask with 2 firesafe cannula valves (or equivalent); and humidifier (when specified.) Concentrator shall have a flow rate capacity up to 5LPM. HCPCS: E1390 Contract Period: Base POP Begin: 07-01-2026 POP End: 02-28-2027 PRINCIPAL NAICS CODE: 621610 - Home Health Care Services PRODUCT/SERVICE CODE: Q201 - Medical - Managed Healthcare	8.00	MO	—	—
0002	Rental Concentrator setup with backup system consisting of compressed gas source, regulator, stand (nasal cannula or mask and humidifier, when specified.) Concentrator shall have a flow rate capacity up to 10LPM (High Liter Flow). HCPCS: E1390 Contract Period: Base POP Begin: 07-01-2026 POP End: 02-28-2027 PRINCIPAL NAICS CODE: 621610 - Home Health Care Services PRODUCT/SERVICE CODE: Q201 - Medical - Managed Healthcare	8.00	MO	—	—
0003	Rental portable concentrator setup with backup system consisting of compressed gas source, regulator, stand (nasal cannula or mask and humidifier, when specified.) Concentrator shall have a flow rate capacity up to 10LPM (High Liter Flow). HCPCS: E1390 Contract Period: Base POP Begin: 07-01-2026 POP End: 02-28-2027 PRINCIPAL NAICS CODE: 621610 - Home Health Care Services PRODUCT/SERVICE CODE: Q201 - Medical - Managed Healthcare	8.00	MO	—	—
0004		8.00	MO	—	—

					Rental Portable Concentrator System consisting (compressed gas source) shall provide a minimum of 92% (+/- 3%) oxygen concentration at all flow settings. Weight <20 lbs w/Power. FAA approved for flight. HCPCS: E1392 Contract Period: Base POP Begin: 07-01-2026 POP End: 02-28-2027 PRINCIPAL NAICS CODE: 621610 - Home Health Care Services PRODUCT/SERVICE CODE: Q201 - Medical - Managed Healthcare
0005	8.00	MO			Rental Self-Filling Oxygen Concentrator: Single piece concentrator with capability to refill portable oxygen cylinder. HCPCS: K0738 Contract Period: Base POP Begin: 07-01-2026 POP End: 02-28-2027 PRINCIPAL NAICS CODE: 621610 - Home Health Care Services PRODUCT/SERVICE CODE: Q201 - Medical - Managed Healthcare
0006	8.00	MO			Stationary setup. Cylinder, size H, K, M60, or J set-up consisting of regulator, flow meter, safety stand, humidifier, and disposable supplies (emergency back up system or as primary). HCPCS: E0424 Contract Period: Base POP Begin: 07-01-2026 POP End: 02-28-2027 PRINCIPAL NAICS CODE: 621610 - Home Health Care Services PRODUCT/SERVICE CODE: Q201 - Medical - Managed Healthcare
0007	8.00	MO			Rental Portable system consists of "E", "D", "C" or "B" (M6) size aluminum (or equivalent weight metal) cylinder with regulator, flow meter, handcart, pouch and disposable supplies. Not included with concentrator set-up. HCPCS: E0431 Contract Period: Base POP Begin: 07-01-2026 POP End: 02-28-2027 PRINCIPAL NAICS CODE: 621610 - Home Health Care Services PRODUCT/SERVICE CODE: Q201 - Medical - Managed Healthcare

0008	8.00	MO	_____	_____
Rental Demand Pulse Conserver Device (not included with any above set-up rate) not less than a 5:1 ratio or 60ML/pulse. HCPCS: E1399 Contract Period: Base POP Begin: 07-01-2026 POP End: 02-28-2027 PRINCIPAL NAICS CODE: 621610 - Home Health Care Services PRODUCT/SERVICE CODE: Q201 - Medical - Managed Healthcare				
0009	8.00	MO	_____	_____
Cylinder, size "B(M6)" refill for A0008 above. Aluminum (or metal of equivalent weight) tanks required. HCPCS: E0443 Contract Period: Base POP Begin: 07-01-2026 POP End: 02-28-2027 PRINCIPAL NAICS CODE: 621610 - Home Health Care Services PRODUCT/SERVICE CODE: Q201 - Medical - Managed Healthcare				
0010	8.00	MO	_____	_____
Cylinder, size "C" refill for A0008 above. Aluminum (or metal of equivalent weight) tanks required. HCPCS: E0443 Contract Period: Base POP Begin: 07-01-2026 POP End: 02-28-2027 PRINCIPAL NAICS CODE: 621610 - Home Health Care Services PRODUCT/SERVICE CODE: Q201 - Medical - Managed Healthcare				
0011	8.00	MO	_____	_____
Cylinder, size "D" refill for A0008 above. Aluminum (or metal of equivalent weight) tanks required. HCPCS: E0443 Contract Period: Base POP Begin: 07-01-2026 POP End: 02-28-2027 PRINCIPAL NAICS CODE: 621610 - Home Health Care Services PRODUCT/SERVICE CODE: Q201 - Medical - Managed Healthcare				
0012	8.00	MO	_____	_____
Cylinder, size "E" refill for A0008 above. Aluminum (or metal				

			of equivalent weight) tanks required. HCPCS: E0443 Contract Period: Base POP Begin: 07-01-2026 POP End: 02-28-2027 PRINCIPAL NAICS CODE: 621610 - Home Health Care Services PRODUCT/SERVICE CODE: Q201 - Medical - Managed Healthcare		
0013	8.00	MO			
			Cylinder, size M60 refill. HCPCS: E0443 Contract Period: Base POP Begin: 07-01-2026 POP End: 02-28-2027 PRINCIPAL NAICS CODE: 621610 - Home Health Care Services PRODUCT/SERVICE CODE: Q201 - Medical - Managed Healthcare		
0014	8.00	MO			
			Cylinder H refill. HCPCS: E0443 Contract Period: Base POP Begin: 07-01-2026 POP End: 02-28-2027 PRINCIPAL NAICS CODE: 621610 - Home Health Care Services PRODUCT/SERVICE CODE: Q201 - Medical - Managed Healthcare		
0015	8.00	MO			
			Cylinder, size K refill. HCPCS: E0441 Contract Period: Base POP Begin: 07-01-2026 POP End: 02-28-2027 PRINCIPAL NAICS CODE: 621610 - Home Health Care Services PRODUCT/SERVICE CODE: Q201 - Medical - Managed Healthcare		
0016	8.00	MO			
			Cylinder, size J refill (1320mm x 229mm diameter, full weight 78 kg, normal contents is 6800L.). HCPCS: E0441 Contract Period: Base POP Begin: 07-01-2026 POP End: 02-28-2027 PRINCIPAL NAICS CODE: 621610 - Home Health Care Services PRODUCT/SERVICE CODE: Q201 - Medical - Managed Healthcare		

0017	8.00	MO	_____	_____
8 Cylinder Safety Rack. HCPCS: E1355 Contract Period: Base POP Begin: 07-01-2026 POP End: 02-28-2027 PRINCIPAL NAICS CODE: 621610 - Home Health Care Services PRODUCT/SERVICE CODE: Q201 - Medical - Managed Healthcare				
0018	8.00	MO	_____	_____
E Tanks at VAMC. HCPCS: E0443 Contract Period: Base POP Begin: 07-01-2026 POP End: 02-28-2027 PRINCIPAL NAICS CODE: 621610 - Home Health Care Services PRODUCT/SERVICE CODE: Q201 - Medical - Managed Healthcare				
0019	8.00	MO	_____	_____
B (M6) Tanks at VAMC. HCPCS: E0443 Contract Period: Base POP Begin: 07-01-2026 POP End: 02-28-2027 PRINCIPAL NAICS CODE: 621610 - Home Health Care Services PRODUCT/SERVICE CODE: Q201 - Medical - Managed Healthcare				
0020	8.00	MO	_____	_____
Nebulizer Compressor with four hand held nebulizers. HCPCS: E0570 Contract Period: Base POP Begin: 07-01-2026 POP End: 02-28-2027 PRINCIPAL NAICS CODE: 621610 - Home Health Care Services PRODUCT/SERVICE CODE: Q201 - Medical - Managed Healthcare				
0021	8.00	MO	_____	_____
Rental liquid oxygen system (90 –110 lbs) with stationary reservoir with ancillary supplies per beneficiary.. HCPCS: E0439 Contract Period: Base POP Begin: 07-01-2026				

POP End: 02-28-2027 PRINCIPAL NAICS CODE: 621610 - Home Health Care Services PRODUCT/SERVICE CODE: Q201 - Medical - Managed Healthcare			
0022	8.00	MO	
Rental portable liquid oxygen system consists of the portable unit that is filled from the reservoir. HCPCS: E0434 Contract Period: Base POP Begin: 07-01-2026 POP End: 02-28-2027 PRINCIPAL NAICS CODE: 621610 - Home Health Care Services PRODUCT/SERVICE CODE: Q201 - Medical - Managed Healthcare			
0023	8.00	MO	
Rental portable liquid oxygen system with conserving devise and consists of large reservoir and portable unit that is filled from the reservoir. HCPCS: E0434 Contract Period: Base POP Begin: 07-01-2026 POP End: 02-28-2027 PRINCIPAL NAICS CODE: 621610 - Home Health Care Services PRODUCT/SERVICE CODE: Q201 - Medical - Managed Healthcare			
0024	8.00	MO	
Liquid oxygen per pound. HCPCS: E0442 Contract Period: Base POP Begin: 07-01-2026 POP End: 02-28-2027 PRINCIPAL NAICS CODE: 621610 - Home Health Care Services PRODUCT/SERVICE CODE: Q201 - Medical - Managed Healthcare			
0025	8.00	MO	
Emergency Set up within 4-hour discharge from hospital (for expedited services). HCPCS: E1399 Contract Period: Base POP Begin: 07-01-2026 POP End: 02-28-2027 PRINCIPAL NAICS CODE: 621610 - Home Health Care Services PRODUCT/SERVICE CODE: Q201 - Medical - Managed Healthcare			

0026	8.00	MO		
Additional Certified Respiratory Therapist (CRT) Registered Respiratory Therapist (RRT) or Registered Nurse (RN) visit. HCPCS: E1399 Contract Period: Base POP Begin: 07-01-2026 POP End: 02-28-2027 PRINCIPAL NAICS CODE: 621610 - Home Health Care Services PRODUCT/SERVICE CODE: Q201 - Medical - Managed Healthcare				
0027	8.00	MO		
Travel Coordination (O2 and equipment) fee per trip (not including cost of equipment/supplies). HCPCS: E1399 Contract Period: Base POP Begin: 07-01-2026 POP End: 02-28-2027 PRINCIPAL NAICS CODE: 621610 - Home Health Care Services PRODUCT/SERVICE CODE: Q201 - Medical - Managed Healthcare				
0028	8.00	MO		
Concentrator Set-up by RT/RN @ hotel. HCPCS: E1399 Contract Period: Base POP Begin: 07-01-2026 POP End: 02-28-2027 PRINCIPAL NAICS CODE: 621610 - Home Health Care Services PRODUCT/SERVICE CODE: Q201 - Medical - Managed Healthcare				
0029	8.00	MO		
Concentrator Pick-up @hotel. HCPCS: E1399 Contract Period: Base POP Begin: 07-01-2026 POP End: 02-28-2027 PRINCIPAL NAICS CODE: 621610 - Home Health Care Services PRODUCT/SERVICE CODE: Q201 - Medical - Managed Healthcare				
0030	8.00	MO		
Contractor Setup VA Provided CPAP/BIPAP (new) (DME Delivery). HCPCS: E0601 Contract Period: Base				

POP Begin: 07-01-2026 POP End: 02-28-2027 PRINCIPAL NAICS CODE: 621610 - Home Health Care Services PRODUCT/SERVICE CODE: Q201 - Medical - Managed Healthcare			
0031	8.00	MO	_____
Semi Annual RT/RN Assessment & Maintenance of CPAP/BIPAP. HCPCS: E0601 Contract Period: Base POP Begin: 07-01-2026 POP End: 02-28-2027 PRINCIPAL NAICS CODE: 621610 - Home Health Care Services PRODUCT/SERVICE CODE: Q201 - Medical - Managed Healthcare			
0032	8.00	MO	_____
Set up Contractor Owned CPAP/BIPAP Setup (new) (DME Delivery). HCPCS: E0601 Contract Period: Base POP Begin: 07-01-2026 POP End: 02-28-2027 PRINCIPAL NAICS CODE: 621610 - Home Health Care Services PRODUCT/SERVICE CODE: Q201 - Medical - Managed Healthcare			
0033	8.00	MO	_____
Suction Machine Invacare. HCPCS: E0600 Contract Period: Base POP Begin: 07-01-2026 POP End: 02-28-2027 PRINCIPAL NAICS CODE: 621610 - Home Health Care Services PRODUCT/SERVICE CODE: Q201 - Medical - Managed Healthcare			
0034	8.00	MO	_____
Travel Tank. HCPCS: E1399 Contract Period: Base POP Begin: 07-01-2026 POP End: 02-28-2027 PRINCIPAL NAICS CODE: 621610 - Home Health Care Services PRODUCT/SERVICE CODE: Q201 - Medical - Managed Healthcare			

0035	8.00	MO		
Trip Charge Area A (0-50 miles). HCPCS: E1399 Contract Period: Base POP Begin: 07-01-2026 POP End: 02-28-2027 PRINCIPAL NAICS CODE: 621610 - Home Health Care Services PRODUCT/SERVICE CODE: Q201 - Medical - Managed Healthcare				
0036	8.00	MO		
Trip Charge Area B (51-100 miles). HCPCS: E1399 Contract Period: Base POP Begin: 07-01-2026 POP End: 02-28-2027 PRINCIPAL NAICS CODE: 621610 - Home Health Care Services PRODUCT/SERVICE CODE: Q201 - Medical - Managed Healthcare				
0037	8.00	MO		
Trip Charge Area C (100-200 miles). HCPCS: E1399 Contract Period: Base POP Begin: 07-01-2026 POP End: 02-28-2027 PRINCIPAL NAICS CODE: 621610 - Home Health Care Services PRODUCT/SERVICE CODE: Q201 - Medical - Managed Healthcare				
0038	8.00	MO		
Area D Mileage Charge Per Mile Beyond 200 Miles. HCPCS: E1399 Contract Period: Base POP Begin: 07-01-2026 POP End: 02-28-2027 PRINCIPAL NAICS CODE: 621610 - Home Health Care Services PRODUCT/SERVICE CODE: Q201 - Medical - Managed Healthcare				
0039	8.00	MO		
Labor Rate Per Hour (vehicle operation, equipment setup, services performed in accordance with SOW). HCPCS: E1340 Contract Period: Base POP Begin: 07-01-2026 POP End: 02-28-2027				

PRINCIPAL NAICS CODE: 621610 - Home Health Care Services PRODUCT/SERVICE CODE: Q201 - Medical - Managed Healthcare			
0040	8.00	MO	_____
Storage Per Square Feet for GFE in excess of 800 sq ft. HCPCS: E1399 Contract Period: Base POP Begin: 07-01-2026 POP End: 02-28-2027 PRINCIPAL NAICS CODE: 621610 - Home Health Care Services PRODUCT/SERVICE CODE: Q201 - Medical - Managed Healthcare			
0041	8.00	MO	_____
Ventilators (primary and backup) including all supplies. HCPCS: E0450 Contract Period: Base POP Begin: 07-01-2026 POP End: 02-28-2027 PRINCIPAL NAICS CODE: 621610 - Home Health Care Services PRODUCT/SERVICE CODE: Q201 - Medical - Managed Healthcare			
GRAND TOTAL			_____

B.4 DELIVERY SCHEDULE

ITEM NUMBER	SHIPPING INFORMATION	QUANTITY	DELIVERY DATE
0001- 0041	SHIP TO: El Paso VA Health Care System Prosthetics Service 5001 N. Piedra ST El Paso, TX 79930 USA MARK FOR: Tyjuan Johnson 915-564-7961 tyjuan.johnson@va.gov	8.00	

SECTION C - CONTRACT CLAUSES

C.1 52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/browse/index/far>

<https://www.va.gov/oal/library/vaar/>

(End of Clause)

<u>FAR Number</u>	<u>Title</u>	<u>Date</u>
52.203-6	RESTRICTIONS ON SUBCONTRACTOR SALES TO THE GOVERNMENT ALTERNATE I (NOV 2021)	JUN 2020
52.203-17	CONTRACTOR EMPLOYEE WHISTLEBLOWER RIGHTS	NOV 2023
52.203-19	PROHIBITION ON REQUIRING CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS	JAN 2017
52.204-13	SYSTEM FOR AWARD MANAGEMENT—MAINTENANCE (DEVIATION)	NOV 2025
52.209-6	PROTECTING THE GOVERNMENT'S INTEREST WHEN SUBCONTRACTING WITH CONTRACTORS DEBARRED, SUSPENDED, PROPOSED FOR DEBARMENT, OR VOLUNTARILY EXCLUDED	JAN 2025
52.209-9	UPDATES OF PUBLICLY AVAILABLE INFORMATION REGARDING RESPONSIBILITY MATTERS	OCT 2018
52.209-10	PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS	NOV 2015
52.212-4	CONTRACT TERMS AND CONDITIONS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES	NOV 2023
52.219-8	UTILIZATION OF SMALL BUSINESS CONCERNS (DEVIATION)	NOV 2025
52.219-16	LIQUIDATED DAMAGES—SUBCONTRACTING PLAN (DEVIATION)	NOV 2025
52.222-35	EQUAL OPPORTUNITY FOR VETERANS (DEVIATION)	NOV 2025
52.222-36	EQUAL OPPORTUNITY FOR WORKERS WITH DISABILITIES (DEVIATION)	NOV 2025
52.222-37	EMPLOYMENT REPORTS ON VETERANS (DEVIATION)	NOV 2025
52.222-50	COMBATING TRAFFICKING IN PERSONS (DEVIATION)	NOV 2025
52.223-23	SUSTAINABLE PRODUCTS (DEVIATION)	NOV 2025
52.226-8	ENCOURAGING CONTRACTOR POLICIES TO BAN TEXT MESSAGING WHILE DRIVING	MAY 2024
52.232-33	PAYMENT BY ELECTRONIC FUNDS TRANSFER—SYSTEM FOR AWARD MANAGEMENT	OCT 2018
52.232-40	PROVIDING ACCELERATED PAYMENTS TO SMALL BUSINESS SUBCONTRACTORS	MAR 2023
52.233-3	PROTEST AFTER AWARD	AUG 1996
52.233-4	APPLICABLE LAW FOR BREACH OF CONTRACT CLAIM	OCT 2004
52.237-3	CONTINUITY OF SERVICES	JAN 1991

C.2 SUPPLEMENTAL INSURANCE REQUIREMENTS

In accordance with FAR 28.307-2 and FAR 52.228-5, the following minimum coverage shall apply to this contract:

(a) Workers' compensation and employers liability: Contractors are required to comply with applicable Federal and State workers' compensation and occupational disease statutes. If occupational diseases are not compensable under those statutes, they shall be covered under the employer's liability section of the insurance policy, except when contract operations are so commingled with a Contractor's commercial operations that it would not be practical to require this coverage. Employer's liability coverage of at least \$100,000 is required, except in States with exclusive or monopolistic funds that do not permit workers' compensation to be written by private carriers.

(b) General Liability: \$500,000.00 per occurrences.

(c) Automobile liability: \$200,000.00 per person; \$500,000.00 per occurrence and \$20,000.00 property damage.

(d) The successful bidder must present to the Contracting Officer, prior to award, evidence of general liability insurance without any exclusionary clauses for asbestos that would void the general liability coverage.

(End of Clause)

C.3 52.216-18 ORDERING (AUG 2020)

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from 7/1/2026 through 3/31/2027.

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) A delivery order or task order is considered "issued" when—

(1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;

(2) If sent by fax, the Government transmits the order to the Contractor's fax number; or

(3) If sent electronically, the Government either—

(i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or

(ii) Distributes the delivery order or task order via email to the Contractor's email address.

(d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

(End of Clause)

C.4 52.216-19 ORDER LIMITATIONS (OCT 1995)

(a) *Minimum order.* When the Government requires supplies or services covered by this contract in an amount of less than \$250.00, the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

(b) *Maximum order.* The Contractor is not obligated to honor—

(1) Any order for a single item in excess of \$250,000.00;

(2) Any order for a combination of items in excess of \$740,000.00; or

(3) A series of orders from the same ordering office within seven (7) days that together call for quantities exceeding the limitation in paragraph (b)(1) or (2) of this section.

(c) If this is a requirements contract (i.e., includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.

(d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within one (1) days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of Clause)

C.5 52.216-22 INDEFINITE QUANTITY (NOV 2025) (DEVIATION)

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum." The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum."

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the ordering period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order, which may include order options to be exercised after the ordering period of this contract but before the end of the period of performance of the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order, including options exercised, to

the same extent as if the order were completed during the contract's ordering period; provided, that the Contractor shall not be required to make any deliveries under this contract after 4/30/2027.

(End of Clause)

C.6 52.217-8 OPTION TO EXTEND SERVICES (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 30 days.

(End of Clause)

C.7 52.240-91 SECURITY PROHIBITIONS AND EXCLUSIONS (NOV 2025) (DEVIATION)

(a) *Definitions.* As used in this clause—

American Security Drone Act-covered foreign entity means an entity included on a list that the Federal Acquisition Security Council (FASC) develops and maintains and publishes in the System for Award Management (SAM) at <https://www.sam.gov> (section 1822 of Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

Backhaul means intermediate links between the core network, or backbone network, and the small subnetworks at the edge of the network (e.g., connecting cell phones/towers to the core telephone network). Backhaul can be wireless (e.g., microwave) or wired (e.g., fiber optic, coaxial cable, Ethernet).

Covered application means the social networking service TikTok or any successor application or service developed or provided by ByteDance Limited or an entity owned by ByteDance Limited.

Covered article, as defined in 41 U.S.C. 4713(k), means:

- (1) Information technology, as defined in 40 U.S.C. 11101, including cloud computing services of all types;
- (2) Telecommunications equipment or telecommunications service, as those terms are defined in section 3 of the Communications Act of 1934 (47 U.S.C. 153);
- (3) The processing of information on a Federal or non-Federal information system, subject to the requirements of the Controlled Unclassified Information program (see 32 CFR part 2002); or
- (4) Hardware, systems, devices, software, or services that include embedded or incidental information technology.

Covered foreign country means The People's Republic of China.

Covered telecommunications equipment or services means—

- (1) Telecommunications equipment produced by Huawei Technologies Company or ZTE Corporation (or any subsidiary or affiliate of such entities);
- (2) For the purpose of public safety, security of Government facilities, physical security surveillance of critical infrastructure, and other national security purposes, video surveillance and telecommunications equipment produced by Hytera Communications Corporation, Hangzhou Hikvision Digital Technology Company, or Dahua Technology Company (or any subsidiary or affiliate of such entities);
- (3) Telecommunications or video surveillance services provided by such entities or using such equipment; or
- (4) Telecommunications or video surveillance equipment or services produced or provided by an entity that the Secretary of Defense, in consultation with the Director of National Intelligence or the Director of the Federal Bureau of Investigation, reasonably believes to be an entity owned or controlled by, or otherwise connected to, the government of a covered foreign country.

Critical technology means—

- (1) Defense articles or defense services included on the United States Munitions List set forth in the International Traffic in Arms Regulations under subchapter M of chapter I of title 22, Code of Federal Regulations;
- (2) Items included on the Commerce Control List set forth in Supplement No. 1 to part 774 of the Export Administration Regulations under subchapter C of chapter VII of title 15, Code of Federal Regulations, and controlled—
 - (i) Pursuant to multilateral regimes, including for reasons relating to national security, chemical and biological weapons proliferation, nuclear nonproliferation, or missile technology; or
 - (ii) For reasons relating to regional stability or surreptitious listening;
- (3) Specially designed and prepared nuclear equipment, parts and components, materials, software, and technology covered by part 810 of title 10, Code of Federal Regulations (relating to assistance to foreign atomic energy activities);
- (4) Nuclear facilities, equipment, and material covered by part 110 of title 10, Code of Federal Regulations (relating to export and import of nuclear equipment and material);
- (5) Select agents and toxins covered by part 331 of title 7, Code of Federal Regulations, part 121 of title 9 of such Code, or part 73 of title 42 of such Code; or
- (6) Emerging and foundational technologies controlled pursuant to section 1758 of the Export Control Reform Act of 2018 (50 U.S.C. 4817).

FASC-prohibited unmanned aircraft system means an unmanned aircraft system manufactured or assembled by an American Security Drone Act—covered foreign entity.

FASCSA order means any of the following orders issued under the Federal Acquisition Supply Chain Security Act (FASCSA) requiring removing covered articles from executive agency information systems or excluding one or more named sources or named covered articles from executive agency procurement actions, as described in 41 CFR 201-1.303(d) and (e):

(1) The Secretary of Homeland Security may issue FASCSA orders that apply to civilian agencies, to the extent not covered by paragraph (2) or (3) of this definition. This type of FASCSA order may be referred to as a Department of Homeland Security (DHS) FASCSA order.

(2) The Secretary of Defense may issue FASCSA orders that apply to the Department of Defense (DoD) and national security systems other than sensitive compartmented information systems. This type of FASCSA order may be referred to as a DoD FASCSA order.

(3) The Director of National Intelligence (DNI) may issue FASCSA orders that apply to the intelligence community and sensitive compartmented information systems, to the extent not covered by paragraph (2) of this definition. This type of FASCSA order may be referred to as a DNI FASCSA order.

Information technology, as defined in 40 U.S.C. 11101(6)—

(1) Means any equipment or interconnected system or subsystem of equipment, used in the automatic acquisition, storage, analysis, evaluation, manipulation, management, movement, control, display, switching, interchange, transmission, or reception of data or information by the executive agency, if the equipment is used by the executive agency directly or is used by a contractor under a contract with the executive agency that requires the use—

(i) Of that equipment; or

(ii) Of that equipment to a significant extent in the performance of a service or the furnishing of a product;

(2) Includes computers, ancillary equipment (including imaging peripherals, input, output, and storage devices necessary for security and surveillance), peripheral equipment designed to be controlled by the central processing unit of a computer, software, firmware and similar procedures, services (including support services), and related resources; but

(3) Does not include any equipment acquired by a Federal contractor incidental to a Federal contract.

Intelligence community, as defined by 50 U.S.C. 3003(4), means the following—

(1) The Office of the Director of National Intelligence;

(2) The Central Intelligence Agency;

(3) The National Security Agency;

(4) The Defense Intelligence Agency;

(5) The National Geospatial-Intelligence Agency;

(6) The National Reconnaissance Office;

(7) Other offices within the Department of Defense for the collection of specialized national intelligence through reconnaissance programs;

(8) The intelligence elements of the Army, the Navy, the Air Force, the Marine Corps, the Coast Guard, the Federal Bureau of Investigation, the Drug Enforcement Administration, and the Department of Energy;

(9) The Bureau of Intelligence and Research of the Department of State;

(10) The Office of Intelligence and Analysis of the Department of the Treasury;

(11) The Office of Intelligence and Analysis of the Department of Homeland Security; or

(12) Such other elements of any department or agency as may be designated by the President, or designated jointly by the Director of National Intelligence and the head of the department or agency concerned, as an element of the intelligence community.

Interconnection arrangement means arrangements governing the physical connection of two or more networks to allow the use of another's network to hand off traffic where it is ultimately delivered (e.g., connecting a customer of telephone provider A to a customer of telephone company B) or sharing data and other information resources.

Kaspersky Lab-covered article means any hardware, software, or service that—

(1) Is developed or provided by a Kaspersky Lab-covered entity;

(2) Includes any hardware, software, or service developed or provided in whole or in part by a Kaspersky Lab-covered entity; or

(3) Contains components using any hardware or software developed in whole or in part by a Kaspersky Lab-covered entity.

Kaspersky Lab-covered entity means—

(1) Kaspersky Lab;

(2) Any successor entity to Kaspersky Lab, including any change in name, e.g., "Kaspersky";

(3) Any entity that controls, is controlled by, or is under common control with Kaspersky Lab; or

(4) Any entity of which Kaspersky Lab has a majority ownership.

National security system, as defined in 44 U.S.C. 3552, means any information system (including any telecommunications system) used or operated by an agency or by a contractor of an agency, or other organization on behalf of an agency—

(1) The function, operation, or use of which involves intelligence activities; involves cryptologic activities related to national security; involves command and control of military forces; involves equipment that is an integral part of a weapon or weapons system; or is critical

to the direct fulfillment of military or intelligence missions, but does not include a system that is to be used for routine administrative and business applications (including payroll, finance, logistics, and personnel management applications); or

(2) Is protected at all times by procedures established for information that have been specifically authorized under criteria established by an Executive order or an Act of Congress to be kept classified in the interest of national defense or foreign policy.

Roaming means cellular communications services (e.g., voice, video, data) received from a visited network when unable to connect to the facilities of the home network either because signal coverage is too weak or because traffic is too high.

Sensitive compartmented information means classified information concerning or derived from intelligence sources, methods, or analytical processes, which is required to be handled within formal access control systems established by the Director of National Intelligence.

Sensitive compartmented information system means a national security system authorized to process or store sensitive compartmented information.

Source means a non-Federal supplier, or potential supplier, of products or services, at any tier.

Subsidiary means an entity in which more than 50 percent of the entity is owned directly by a parent corporation or through another subsidiary of a parent corporation.

Substantial or essential component means any component necessary for the proper function or performance of a piece of equipment, system, or service.

Unmanned aircraft means an aircraft that is operated without the possibility of direct human intervention from within or on the aircraft (49 U.S.C. 44801(11)).

Unmanned aircraft system means an unmanned aircraft and associated elements (including communication links and the components that control the unmanned aircraft) that are required for the operator to operate safely and efficiently in the national airspace system (49 U.S.C. 44801(12)).

(b) *Prohibitions on providing or using specific products or services in performance of contract.* Unless a waiver or exception applies, the Contractor is prohibited from providing any products or services to the Government or using in the performance of the contract any of the following:

(1) A covered application on any information technology owned or managed by the Government, or on any information technology used or provided by the Contractor under this contract, including equipment provided by the Contractor's employees (section 102 of Division R of the Consolidated Appropriations Act, 2023 (Pub. L. 117-328));

(2) A Kaspersky Lab-covered article (Section 1634 of Division A of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91));

(3) Covered telecommunications equipment or services used as a substantial or essential component of any system, or as critical technology as part of any system (paragraphs (a)(1)(A) of section 889 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232)). This does not prohibit contractors from providing—

(i) A service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) Prohibition on unmanned aircraft systems manufactured or assembled by American Security Drone Act—covered foreign entities.

(1) Prohibition. The Contractor is prohibited from—

(i) Delivering any FASC-prohibited unmanned aircraft system, which includes unmanned aircraft (i.e., drones) and associated elements (sections 1823 and 1826 of American Security Drone Act of 2023, within the National Defense Authorization Act for Fiscal Year 2024, Pub. L. 118-31, Div. A, Title XVIII, Subtitle B, 41 U.S.C. 3901 note prec.);

(ii) On or after December 22, 2025, operating a FASC-prohibited unmanned aircraft system in the performance of the contract (section 1824 of Pub. L. 118-31); and

(iii) On or after December 22, 2025, using Federal funds to procure or operate a FASC-prohibited unmanned aircraft system (section 1825 of Pub. L. 118-31).

(2) *Procedures.* The Contractor shall search SAM for the FASC-maintained list of American Security Drone Act—covered foreign entities before proposing, or using in performance of the contract, any unmanned aircraft system. Also, the Contractor shall ensure any effort or expenditure associated with a FASC-prohibited unmanned aircraft system is consistent with a corresponding exemption, exception, or waiver determination expressly stated in the contract.

(3) *Exemptions, exceptions, and waivers.* The prohibitions in paragraph (c) of this clause do not apply where the agency has determined an exemption, exception, or waiver applies, and the contract indicates that such a determination has been made. See sections 1823 through 1825 and 1832 of Public Law 118-31 for statutory requirements pertaining to exemptions, exceptions, and waivers.

(d) *Prohibition on using or providing specific products or services or conducting certain transactions regardless of connection to contract.*

(1) *Certain telecommunications and video surveillance equipment, systems, or services.*

(i) Unless an applicable waiver has been issued by the Government, the Contractor cannot use any equipment, systems, or services that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system (paragraph (a)(1)(B) of section 889 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232)).

(ii) This prohibition applies to using covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. This does not prohibit the contractor from using—

(A) A service that connects to the facilities of a third party, such as backhaul, roaming, or interconnection arrangements; or

(B) Telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Office of Foreign Assets Control Restrictions.

(i) Except as authorized by the Office of Foreign Assets Control (OFAC) in the Department of the Treasury, the Contractor shall not acquire, for use in the performance of this contract, any supplies or services if any proclamation, Executive order, or statute administered by OFAC, or if OFAC's implementing regulations at 31 CFR chapter V, would prohibit such a transaction by a person subject to the jurisdiction of the United States.

(ii) Except as authorized by OFAC, most transactions involving Cuba, Iran, and Sudan are prohibited, as are most imports from Burma or North Korea, into the United States or its outlying areas.

(A) For lists of entities and individuals subject to economic sanctions, see OFAC's List of Specially Designated Nationals and Blocked Persons at <https://home.treasury.gov/policy-issues/financial-sanctions/specially-designated-nationals-and-blocked-persons-list-sdn-human-readable-lists>.

(B) For more information about these restrictions, as well as updates, see OFAC's regulations at 31 CFR chapter V and at <https://home.treasury.gov/policy-issues/office-of-foreign-assets-control-sanctions-programs-and-information>.

(C) To conduct electronic screens of potential parties to regulated transactions, see the consolidated screening list at <https://www.trade.gov/consolidated-screening-list>, which consolidates multiple export screening lists of the Departments of Commerce, State, and the Treasury.

(3) Sudan prohibition. The Contractor is prohibited from conducting any restricted business operations in Sudan in accordance with Accountability and Divestment Act of 2007 (Pub. L. 110-174).

(4) Iran prohibitions.

(i) Unless an exception applies according to paragraph (d)(4)(iii) or the Government grants a waiver, the contractor shall not engage in certain activities or transactions relating to Iran (section 6(b)(1)(A) of Iran Sanctions Act (50 U.S.C. 1701 note)).

(ii) Unless an exception applies according to paragraph (d)(4)(iii) or the Government grants a waiver, contractor shall not export certain sensitive technology to Iran, as determined by the President, and has an active exclusion in SAM (22 U.S.C. 8515).

(iii) The prohibition in paragraphs (d)(4)(i) and (d)(4)(ii) do not apply if the acquisition is subject to trade agreements and the offeror certifies that all the offered products are designated country end products or designated country construction material (see part 25).

(iv) Unless an exception applies or the Government grants a waiver, contractors are prohibited from knowingly engaging in any significant transaction (i.e., over \$15,000) with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked according to the International Emergency Economic Powers Act (section 6(b)(1)(B) of Iran Sanctions Act (50 U.S.C. 1701 note)).

(e) *Governmentwide exclusion and removal orders.*

(1) Unless the Government has issued an applicable waiver, contractors shall not provide or use as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order as follows:

(i) For solicitations and contracts awarded by a Department of Defense contracting office, DoD FASCSA orders apply.

(ii) For all other solicitations and contracts, DHS FASCSA orders apply.

(2) The Contractor shall search for the phrase "FASCSA order" in the System for Award Management (SAM) at <https://www.sam.gov> to locate applicable FASCSA orders.

(3) The Government may identify in the solicitation other FASCSA orders that are not in SAM, which are effective and apply to the solicitation and resulting contract.

(4) A FASCSA order issued after the date of solicitation applies to this contract only if added by an amendment to the solicitation or modification to the contract (see FAR 40.204-1(c)).

(f) *Reasonable inquiry.* The contractor shall conduct a reasonable inquiry to determine if there are any prohibited products or services. The inquiry will look at any information in the entity's possession but does not need to include an internal or third-party audit.

(g) *Removal of prohibited products and services.* For Federal Supply Schedules, Governmentwide acquisition contracts, multi-agency contracts or any other procurement instrument intended for use by multiple agencies, upon notification from the Contracting Officer, during the performance of the contract, the Contractor shall promptly make any necessary changes or modifications to remove any product or service produced or provided by a source that this clause prohibits.

(h) *General report.*

(1) If the Contractor identifies or is notified by any source, (including a subcontractor at any tier), that any product or service provided or used (or to be provided or used) during contract performance does not comply with any prohibition in this clause, then the Contractor shall report the following information, or as much information is known, in writing to the contracting office as identified in paragraph (h)(2) within 72 hours:

(i) Contract number and order number, if applicable;

(ii) The specific prohibition the product or service is not complying with;

(iii) A description of the products or services that the Contractor identifies or has reason to suspect is prohibited (include brand; model number, such as the original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable);

(iv) The entity that produced the product or service (include entity name, unique entity identifier, Contractor and Government Entity (CAGE) code, facilities responsible for design, fabrication, assembly, packaging, and test of the product, and whether the entity was the OEM or a distributor (provide manufacturer codes and distributor codes used for the product));

(v) Description of the functionality of the product or service and how that functionality impacts the risk to the product or service;

(vi) An explanation of any factors relevant to determining if the product or service should be permitted by an applicable exception, exemption, or waiver (if the contractor would like the Government to consider a waiver, and asks for such a waiver);

(vii) Whether alternative products or services are available that would comply with the prohibition;

(viii) If the product or service is related to item maintenance, include the following information on the item being maintained:

(A) Brand;

(B) Model number, OEM number, manufacturer part number, or wholesaler number; and

(C) Item description, as applicable.

(ix) Any readily available information about mitigation actions implemented or recommended.

(2) If a report must be submitted to a contracting office, the Contractor shall submit the report as follows:

(i) If a Department of Defense contracting office, the Contractor shall report to the website at <https://dibnet.dod.mil>.

(ii) For all other contracting offices, the Contractor shall report to the Contracting Officer.

(iii) For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order.

(3) If the report provided does not contain any of the information required by paragraph (h)(1) of this clause, and the contractor later discovers new information that is required by paragraph (h)(1) of this clause, then the contractor shall submit a subsequent report within 72 hours of discovering the new information.

(4) The contractor shall also report the information in paragraph (h)(1) if the contractor wishes to ask for a waiver of the requirements of a new FASCSA order being applied through modification.

(i) New FASCSA orders report.

(1) During contract performance, the Contractor shall review SAM at least once every three months, or as advised by the Contracting Officer, to check for covered articles subject to FASCSA order(s), or for products or services produced by a source subject to FASCSA order(s) not currently identified under paragraph (e) of this clause.

(2) If the Contractor identifies a new FASCSA order(s) that could impact their supply chain, then the Contractor shall conduct a reasonable inquiry to identify whether a covered article or product or service produced or provided by a source subject to the FASCSA order(s) was provided to the Government or used during contract performance. The inquiry will look at any information in the entity's possession but does not need to include an internal or third-party audit.

(3) The Contractor shall submit a report to the contracting office identified in paragraph (h)(2) of this clause if the Contractor identifies, including through any notification by a subcontractor at any tier, that a covered article or product or service produced or provided by a source was provided to the Government or used during contract performance and is subject to a FASCSA order(s). For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order. The Contractor shall report the following information within 72 hours for each covered article or each product or service produced or provided by a source, where the covered article or source is subject to a FASCSA order:

- (i) Contract number and order number, if applicable;
- (ii) Name of the covered article or source subject to a FASCSA order;
- (iii) The specific FASCSA order the product or service does not comply with;
- (iv) The elements of (h)(1)(iii) through (ix) of this clause.

(j) Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (j) but excluding subparagraphs (d)(1) and (i)(1), in all subcontracts and other contractual instruments, including subcontracts for acquiring commercial products or commercial services.

(End of Provision)

C.8 VAAR 852.201-70 CONTRACTING OFFICER'S REPRESENTATIVE (DEC 2022)

The Contracting Officer reserves the right to designate representatives to act for him/her in furnishing technical guidance and advice or generally monitor the work to be performed under this contract. Such designation will be in writing and will define the scope and limitation of the designee's authority. A copy of the designation letter shall be furnished to the Contractor.

(End of Clause)

C.9 VAAR 852.203-70 COMMERCIAL ADVERTISING (MAY 2018)

The Contractor shall not make reference in its commercial advertising to Department of Veterans Affairs contracts in a manner that states or implies the Department of Veterans Affairs approves or endorses the Contractor's products or services or considers the Contractor's products or services superior to other products or services.

(End of Clause)

C.10 VAAR 852.211-72 TECHNICAL INDUSTRY STANDARDS (NOV 2018)

(a) The Contractor shall conform to the standards established by: as to .

(b) The Contractor shall submit proof of conformance to the standard. This proof may be a label or seal affixed to the equipment or supplies, warranting that the item(s) have been tested in accordance with the standards and meet the contract requirement. Proof may also be furnished by the organization listed above certifying that the item(s) furnished have been tested in accordance with and conform to the specified standards.

(c) Offerors may obtain the standards cited in this provision by submitting a request, including the solicitation number, title and number of the publication to:

(d) The offeror shall contact the Contracting Officer if response is not received within two weeks of the request.

(End of Clause)

C.11 VAAR 852.211-76 LIQUIDATED DAMAGES – REIMBURSEMENT FOR DATA BREACH COSTS (FEB 2023) ALTERNATE I (FEB 2023)

(a) *Definition.* As used in this clause, "contract" means any contract, agreement, order or other instrument and encompasses the definition set forth in FAR 2.101.

(b) *Non-disclosure requirements.* As a condition of performance under a contract, order, agreement, or other instrument that requires access to sensitive personal information as defined in VAAR 802.101, the following is expressly required—

(1) The Contractor, subcontractor, their employees or business associates shall not, directly or through an affiliate or employee of the Contractor, subcontractor, or business associate, disclose sensitive personal information to any other person unless the disclosure is lawful and is expressly permitted under the contract; and

(2) The Contractor, subcontractor, their employees or business associates shall immediately notify the Contracting Officer and the Contracting Officer's Representative (COR) of any security incident that occurs involving sensitive personal information.

(c) *Liquidated damages.* If the Contractor or any of its agents fails to protect VA sensitive personal information or otherwise engages in conduct which results in a data breach, the Contractor shall, in place of actual damages, pay to the Government liquidated damages of [] per affected individual in order to cover costs related to the notification, data breach analysis and credit monitoring. In the event the Contractor provides payment of actual damages in an

amount determined to be adequate by the Contracting Officer, the Contracting Officer may forgo collection of liquidated damages.

(d) *Purpose of liquidated damages.* Based on the results from VA's determination that there was a data breach caused by Contractor's or any of its agents' failure to protect or otherwise engaging in conduct to cause a data breach of VA sensitive personal information, and as directed by the Contracting Officer, the Contractor shall be responsible for paying to the VA liquidated damages in the amount of [] per affected individual to cover the cost of the following:

- (1) Notification related costs.
- (2) Credit monitoring reports.
- (3) Data breach analysis and impact.
- (4) Fraud alerts.
- (5) Identity theft insurance.

(e) *Relationship to termination clause, if applicable.* If the Government terminates this contract in whole or in part under the Termination for cause paragraph, FAR 52.212–4(m), Contract Terms and Conditions—Commercial Products and Commercial Services, the Contractor is liable for damages accruing until the Government reasonably obtains delivery or performance of similar supplies or services. These damages are in addition to costs of repurchase as may be required under the Termination clause.

(End of Clause)

C.12 VAAR 852.219-73 VA NOTICE OF TOTAL SET-ASIDE FOR CERTIFIED SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESSES (JAN 2023) (DEVIATION)

(a) *Definition.* for the Department of Veterans Affairs, “*Service-disabled Veteran-owned small business concern or SDVOSB*”:

(1) Means a small business concern—

(i) Not less than 51 percent of which is owned by one or more service-disabled Veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled Veterans or eligible surviving spouses (see VAAR 802.201, Surviving Spouse definition);

(ii) The management and daily business operations of which are controlled by one or more service-disabled Veterans (or eligible surviving spouses) or, in the case of a service-disabled Veteran with permanent and severe disability, the spouse or permanent caregiver of such Veteran;

(iii) The business meets Federal small business size standards for the applicable North American Industry Classification System (NAICS) code identified in the solicitation document;

(iv) The business has been certified for ownership and control pursuant to 38 U.S.C. 8127, 13 CFR 128, and is listed as certified in the SBA certification database at <https://veterans.certify.sba.gov/>; and

(v) The business agrees to comply with VAAR subpart 819.70 and Small Business Administration (SBA) regulations regarding small business size, government contracting, and the Veteran Small Business Certification Program at 13 CFR parts 121, 125, and 128.

(2) The term “Service-disabled Veteran” means a Veteran, as defined in 38 U.S.C. 101(2), with a disability that is service-connected, as defined in 38 U.S.C. 101(16).

(3) The term “small business concern” has the meaning given that term under section 3 of the Small Business Act (15 U.S.C. 632).

(4) The term “small business concern owned and controlled by Veterans with service-connected disabilities” has the meaning given the term “*small business concern owned and controlled by service-disabled veterans*” under section 3(q)(2) of the Small Business Act (15 U.S.C. 632(q)(2)).

(5) The term “SDVOSB participant” or *certified SDVOSB* means a small business that has been certified in the SBA Veteran Small Business Certification Program and listed in the SBA certification database (see 13 CFR 128.102).

(b) *General*. In order for a concern to submit an offer and be eligible for the award of an SDVOSB set-aside or sole source contract, the concern must qualify as a small business concern under the size standard corresponding to the NAICS code assigned to the contract and be listed as an SDVOSB participant in the SBA certification database as set forth in 13 CFR 128.

(1) Offers received from entities that are not certified SDVOSBs and listed in the SBA certification database at the time of offer shall not be considered.

(2) Any award resulting from this solicitation shall be made to a certified SDVOSB listed in the SBA certification database who is eligible at the time of submission of offer(s) and at the time of award.

(3) The requirements in this clause apply to any contract, order or subcontract where the firm receives a benefit or preference from its designation as an SDVOSB, including set-asides, sole source awards, and evaluation preferences.

(c) *Representation*. Pursuant to 38 U.S.C. 8127(e), only certified SDVOSBs listed in the SBA certification database are considered eligible to receive award of a resulting contract. By submitting an offer, the prospective contractor represents that it is an eligible and certified SDVOSB as defined in this clause, 13 CFR 121, 125, and 128, and VAAR subpart 819.70.

(d) *Agreement/LOS certification*. When awarded a contract action, including orders under multiple award contracts, an SDVOSB agrees that in the performance of the contract, the SDVOSB shall comply with requirements in VAAR subpart 819.70 and SBA regulations on small business size, and government contracting programs at 13 CFR part 121 and part 125, including the non-manufacturer rule and limitations on subcontracting (LOS) requirements in 13

CFR 121.406(b) and 13 CFR 125.6. For the purpose of limitations on subcontracting, only certified SDVOSBs listed in the SBA certification database (including independent contractors) shall be considered eligible and/or “similarly situated” (i.e., a firm that has the same small business program status as the prime contractor). An otherwise eligible firm further agrees to comply with the required LOS certification requirements in this solicitation (see 852.219–75 or 852.219–76 as applicable). These requirements are summarized as follows:

(1) *Services*. In the case of a contract for services (except construction), the SDVOSB prime contractor will not pay more than 50% of the amount paid by the government to the prime for contract performance to firms that are not certified SDVOSBs listed in the SBA certification database (excluding direct costs to the extent they are not the principal purpose of the acquisition and the SDVOSB/ VOSB does not provide the service, such as airline travel, cloud computing services, or mass media purchases). When a contract includes both services and supplies, the 50 percent limitation shall apply only to the service portion of the contract.

(2) *Supplies/products*.

(i) In the case of a contract for supplies or products (other than from a non-manufacturer of such supplies), the SDVOSB prime contractor will not pay more than 50% of the amount paid by the government to the prime for contract performance, excluding the cost of materials, to firms that are not certified SDVOSBs listed in the SBA certification database. When a contract includes both supply and services, the 50 percent limitation shall apply only to the supply portion of the contract.

(ii) In the case of a contract for supplies from a non-manufacturer, the SDVOSB prime contractor will supply the product of a domestic small business manufacturer or processor, unless a waiver as described in 13 CFR 121.406(b)(5) has been granted. Refer to 13 CFR 125.6(a)(2)(ii) for guidance pertaining to multiple item procurements.

(3) *General construction*. In the case of a contract for general construction, the SDVOSB prime contractor will not pay more than 85% of the amount paid by the government to the prime for contract performance, excluding the cost of materials, to firms that are not certified SDVOSBs listed in the SBA certification database.

(4) *Special trade construction contractors*. In the case of a contract for special trade contractors, no more than 75% of the amount paid by the government to the prime for contract performance, excluding the cost of materials, may be paid to firms that are not certified SDVOSBs listed in the SBA certification database.

(5) *Subcontracting*. An SDVOSB subcontractor must meet the NAICS size standard assigned by the prime contractor and be certified and listed in the SBA certification database to count as similarly situated. Any work that a first tier SDVOSB subcontractor further subcontracts will count towards the percent of subcontract amount that cannot be exceeded. For supply or construction contracts, the cost of materials is excluded and not considered to be subcontracted. When a contract includes both services and supplies, the 50 percent limitation shall apply only to the portion of the contract with the preponderance of the expenditure upon which the assigned NAICS is based. For information and more specific requirements, refer to 13 CFR 125.6.

(e) *Required limitations on subcontracting compliance measurement period.* An SDVOSB shall comply with the limitations on subcontracting as follows:

[X] By the end of the base term of the contract or order, and then by the end of each subsequent option period; or

[] By the end of the performance period for each order issued under the contract.

(f) *Joint ventures.* A joint venture may be considered eligible as an SDVOSB if the joint venture complies with the requirements in 13 CFR 128.402 and the managing joint venture partner makes the representations under paragraph (c) of this clause. A joint venture agrees that, in the performance of the contract, the applicable percentage specified in paragraph (d) of this clause will be performed by the aggregate of the joint venture participants.

(g) *Precedence.* The VA Veterans First Contracting Program, as defined in VAAR 802.101, subpart 819.70, and this clause, takes precedence over any inconsistencies between the requirements of the SBA Veteran Small Business Certification Program and the VA Veterans First Contracting Program.

(h) *Misrepresentation.* Pursuant to 38 U.S.C. 8127(g), any business concern, including all its principals, that is determined by VA to have willfully and intentionally misrepresented a company's SDVOSB status is subject to debarment from contracting with the Department for a period of not less than five years (see VAAR 809.406–2 Causes for Debarment).

(End of Clause)

C.13 VAAR 852.219-75 VA NOTICE OF LIMITATIONS ON SUBCONTRACTING—CERTIFICATE OF COMPLIANCE FOR SERVICES AND CONSTRUCTION (JAN 2023) (DEVIATION)

(a) Pursuant to 38 U.S.C. 8127(l)(2), the offeror certifies that—

(1) If awarded a contract (see FAR 2.101 definition), it will comply with the limitations on subcontracting requirement as provided in the solicitation and the resultant contract, as follows:

(i) [X] *Services.* In the case of a contract for services (except construction), the contractor will not pay more than 50% of the amount paid by the government to it to firms that are not certified SDVOSBs listed in the SBA certification database as set forth in 852.219–73 or certified VOSBs listed in the SBA certification database as set forth in 852.219–74. Any work that a similarly situated certified SDVOSB/VOSB subcontractor further subcontracts will count towards the 50% subcontract amount that cannot be exceeded. Other direct costs may be excluded to the extent they are not the principal purpose of the acquisition and small business concerns do not provide the service as set forth in 13 CFR 125.6.

(ii) [] *General construction.* In the case of a contract for general construction, the contractor will not pay more than 85% of the amount paid by the government to it to firms that are not certified SDVOSBs listed in the SBA certification database as set forth in 852.219–73 or certified VOSBs listed in the SBA certification database as set forth in 852.219–74. Any work that a similarly situated certified SDVOSB/VOSB subcontractor further subcontracts will count

towards the 85% subcontract amount that cannot be exceeded. Cost of materials are excluded and not considered to be subcontracted.

(iii) ☐ *Special trade construction contractors.* In the case of a contract for special trade contractors, the contractor will not pay more than 75% of the amount paid by the government to it to firms that are not certified SDVOSBs listed in the SBA certification database as set forth in 852.219–73 or certified VOSBs listed in the SBA certification database as set forth in 852.219–74. Any work that a similarly situated certified SDVOSB/VOSB subcontractor further subcontracts will count towards the 75% subcontract amount that cannot be exceeded. Cost of materials are excluded and not considered to be subcontracted.

(2) The offeror acknowledges that this certification concerns a matter within the jurisdiction of an Agency of the United States. The offeror further acknowledges that this certification is subject to Title 18, United States Code, Section 1001, and, as such, a false, fictitious, or fraudulent certification may render the offeror subject to criminal, civil, or administrative penalties, including prosecution.

(3) If VA determines that an SDVOSB/ VOSB awarded a contract pursuant to 38 U.S.C. 8127 did not act in good faith, such SDVOSB/VOSB shall be subject to any or all of the following:

- (i) Referral to the VA Suspension and Debarment Committee;
- (ii) A fine under section 16(g)(1) of the Small Business Act (15 U.S.C. 645(g)(1)); and
- (iii) Prosecution for violating 18 U.S.C. 1001.

(b) The offeror represents and understands that by submission of its offer and award of a contract it may be required to provide copies of documents or records to VA that VA may review to determine whether the offeror complied with the limitations on subcontracting requirement specified in the contract. Contracting officers may, at their discretion, require the contractor to demonstrate its compliance with the limitations on subcontracting at any time during performance and upon completion of a contract if the information regarding such compliance is not already available to the contracting officer. Evidence of compliance includes, but is not limited to, invoices, copies of subcontracts, or a list of the value of tasks performed.

(c) The offeror further agrees to cooperate fully and make available any documents or records as may be required to enable VA to determine compliance with the limitations on subcontracting requirement. The offeror understands that failure to provide documents as requested by VA may result in remedial action as the Government deems appropriate.

(d) Offeror completed certification/fill-in required. The formal certification must be completed, signed and returned with the offeror's bid, quotation, or proposal. The Government will not consider offers for award from offerors that do not provide the certification, and all such responses will be deemed ineligible for evaluation and award.

Certification

I hereby certify that if awarded the contract, [insert name of offeror] will comply with the limitations on subcontracting specified in this clause and in the resultant contract. I further certify that I am authorized to execute this certification on behalf of [insert name of offeror].

Printed Name of Signee: _____

Printed Title of Signee: _____

Signature: _____

Date: _____

Company Name and Address: _____

(End of Clause)

C.14 VAAR 852.222-71 COMPLIANCE WITH EXECUTIVE ORDER 13899 (DEVIATION)(APR 2025)

(a) The contractor shall comply with Executive Order 13899, Combating Anti-Semitism, pursuant to Title VI of the Civil Rights Act of 1964 (Title VI), 42 U.S.C. 2000d et seq.

(b) The contractor shall timely disclose, in writing, to the Contracting Officer, whenever, in connection with the award, performance, or closeout of this contract or any subcontract thereunder, the Contractor has credible evidence that a principal, employee, agent, or subcontractor of the Contractor has committed a violation under Executive Order 13899, Combating Anti-Semitism pursuant to the Civil Rights Act of 1964 (Title VI), 42 U.S.C. 2000d et seq.

(c) The contractor shall include the terms and conditions of this clause in every subcontract or purchase order so that these terms will be binding on every subcontractor or vendor.

(End of Clause)

C.15 VAAR 852.232-72 ELECTRONIC SUBMISSION OF PAYMENT REQUESTS (NOV 2018)

(a) *Definitions.* As used in this clause—

(1) *Contract financing payment* has the meaning given in FAR 32.001;

(2) *Designated agency office* means the office designated by the purchase order, agreement, or contract to first receive and review invoices. This office can be contractually designated as the receiving entity. This office may be different from the office issuing the payment;

(3) *Electronic form* means an automated system transmitting information electronically according to the accepted electronic data transmission methods and formats identified in paragraph (c) of this clause. Facsimile, email, and scanned documents are not acceptable electronic forms for submission of payment requests;

(4) *Invoice payment* has the meaning given in FAR 32.001; and

(5) *Payment request* means any request for contract financing payment or invoice payment submitted by the contractor under this contract.

(b) *Electronic payment requests.* Except as provided in paragraph (e) of this clause, the contractor shall submit payment requests in electronic form. Purchases paid with a Government-wide commercial purchase card are considered to be an electronic transaction for purposes of this rule, and therefore no additional electronic invoice submission is required.

(c) *Data transmission.* A contractor must ensure that the data transmission method and format are through one of the following:

(1) VA's Electronic Invoice Presentment and Payment System at the current website address provided in the contract.

(2) Any system that conforms to the X12 electronic data interchange (EDI) formats established by the Accredited Standards Center (ASC) and chartered by the American National Standards Institute (ANSI).

(d) *Invoice requirements.* Invoices shall comply with FAR 32.905.

(e) *Exceptions.* If, based on one of the circumstances in this paragraph (e), the Contracting Officer directs that payment requests be made by mail, the Contractor shall submit payment requests by mail through the United States Postal Service to the designated agency office. Submission of payment requests by mail may be required for—

(1) Awards made to foreign vendors for work performed outside the United States;

(2) Classified contracts or purchases when electronic submission and processing of payment requests could compromise the safeguarding of classified or privacy information;

(3) Contracts awarded by contracting officers in the conduct of emergency operations, such as responses to national emergencies;

(4) Solicitations or contracts in which the designated agency office is a VA entity other than the VA Financial Services Center in Austin, Texas; or

(5) Solicitations or contracts in which the VA designated agency office does not have electronic invoicing capability as described above.

(End of Clause)

C.16 VAAR 852.242-71 ADMINISTRATIVE CONTRACTING OFFICER (OCT 2020)

The Contracting Officer reserves the right to designate an Administrative Contracting Officer (ACO) for the purpose of performing certain tasks/duties in the administration of the contract. Such designation will be in writing through an ACO Letter of Delegation and will identify the responsibilities and limitations of the ACO. A copy of the ACO Letter of Delegation will be furnished to the Contractor.

(End of Clause)

(End of Addendum to 52.212-4)

SECTION D - CONTRACT DOCUMENTS, EXHIBITS, OR ATTACHMENTS

See attached document: WD 2015-5461_Rev 30_3.30.26_Grant_Luna_Sierra.

See attached document: WD 2015-5447_Rev 28_3.30.26_Dona Ana NM.

See attached document: WD 2015-5229_Rev29_3.20.26 El Paso_Hudspeth.

See attached document: WD 2015-5805_Rev 29_3.30.26_Culberson.

See attached document: WD 2015-5455_Rev 30_3.30.26_Eddy_Otero Lincoln.

See attached document: WD 2015-5269_Rev 31_3.30.26_Reeves and more.

SECTION E - SOLICITATION PROVISIONS

E.1 52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/browse/index/far>
<https://www.va.gov/oal/library/vaar/>

(End of Provision)

<u>FAR Number</u>	<u>Title</u>	<u>Date</u>
52.203-11	CERTIFICATION AND DISCLOSURE REGARDING PAYMENTS TO INFLUENCE CERTAIN FEDERAL TRANSACTIONS	SEP 2024
52.203-18	PROHIBITION ON CONTRACTING WITH ENTITIES THAT REQUIRE CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS—REPRESENTATION	JAN 2017
52.204-7	SYSTEM FOR AWARD MANAGEMENT—REGISTRATION (DEVIATION)	NOV 2025
52.229-11	TAX ON CERTAIN FOREIGN PROCUREMENTS—NOTICE AND REPRESENTATION	JUN 2020
52.212-1	INSTRUCTIONS TO OFFERORS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES	SEP 2023
ADDENDUM to FAR 52.212-1 INSTRUCTIONS TO OFFERORS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES		

Provisions that are incorporated by reference (by Citation Number, Title, and Date), have the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available.

The following provisions are incorporated into 52.212-1 as an addendum to this solicitation:

E. 2 ADDENDUM to FAR 52.212-1 INSTRUCTIONS TO OFFERORS—COMMERCIAL ITEMS

The following is incorporated in 52.212-1 as an addendum to this solicitation.

This solicitation is issued as a 100% SDVOSB set aside. Vendor must be registered for NAICS 621610 in SAM.gov to be eligible for award and must also be registered as SDVOSB in SBA.gov.

Quotes due 05/29/2026 at 10:00 AM CST.

Email proposal to Jennifer Stringer at jennifer.stringer@va.gov, and cc (carbon copy) via email to David Luttrell at david.luttrell@va.gov.

Point of Contact:

Jennifer Stringer
Senior Contract Specialist/Contracting Officer
Network Contracting Office (NCO) 17
1901 Veterans Memorial Drive
Temple, TX 76504

Phone: 254-421-3957

Email: jennifer.stringer@va.gov

I. TECHNICAL QUESTIONS:

Technical questions shall be accepted by the Government in writing via email only **NO LATER THAN 1:00 PM CST on 05/12/2026. Please list “Technical Questions – 36C25726Q0488 ELP Home Oxygen Services Contract” in the subject line of the email**, and send to Jennifer Stringer, Contracting Officer, at jennifer.stringer@va.gov, and cc (carbon copy) via email to David Luttrell at david.luttrell@va.gov.

Please include in your questions the section of the solicitation/page number each question is referencing. Answers to questions will be posted via amendment to solicitation.

II. OFFER SUBMITTAL INSTRUCTIONS:

- 1) Offeror shall submit quotes by Due Date/Time specified in Block 8 of Standard Form (SF) 1449 of the solicitation directly to Jennifer Stringer, Contracting Officer, at jennifer.stringer@va.gov with a cc (carbon copy) via email to david.luttrell@va.gov.
- 2) By signing the Standard Form (SF)1449/Solicitation, the Contractor attests acknowledgement of receipt of all solicitation amendments if

applicable. Vendor must submit signed copies of SF1449 and all amendments.

- 3) Offeror must complete and return the Price Schedule.
- 4) Contract Pricing and Performance Periods: All pricings shall be invoiced on a monthly basis as stated in the PWS. The contract performance period is one, 8-month period (07/01/2026 to 02/28/2027). Monthly pricing should be based on estimated number of patients.
- 5) Offeror must submit a technical proposal including a transition plan for transitioning out incumbent vendor's equipment.
- 6) Offeror shall submit 3 references of past performance (at least two must be Government contracts) for requirements similar in scope, which documents the contractor's ability to perform the services listed in the Performance Work Statement.
- 7) Subject line of email shall be "Proposal – 36C25726Q0488 ELP Home Oxygen Services Contract".

III. Pricing: Contractor shall submit monthly rates, which shall incorporate all the requirements within the Performance Work Statement.

IV. Period for acceptance of offers: The offeror agrees to hold the prices in its offer firm for 30 calendar days from the date specified for receipt of offers.

Failure to submit a complete offer may result in an unacceptable determination.

V. Basis of Award

This is a competitive comparative analysis selection in which competing offerors' past performance, technical capability and price will be evaluated to determine who represents the best value to the Government at a price that can be determined fair and reasonable and does not exceed available funding for this requirement. By submission of its offer, the offeror accedes to all solicitation requirements, including terms and conditions, representations and certifications, and technical requirements. Failure to meet a requirement may result in an offer being determined technically unacceptable.

E.3 52.209-7 INFORMATION REGARDING RESPONSIBILITY MATTERS (OCT 2018)

(a) *Definitions.* As used in this provision—

"Administrative proceeding" means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

"Federal contracts and grants with total value greater than \$10,000,000" means—

(1) The total value of all current, active contracts and grants, including all priced options; and

(2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

"Principal" means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror [] has [] does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in—

(A) The payment of a monetary fine or penalty of \$5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).

(End of Provision)

E.4 52.212-2 EVALUATION—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (NOV 2021) (DEVIATION OCT 2025)

(a) Evaluation factors. The Government will award a contract resulting from this solicitation to the responsible Offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The quotes will undergo a comparative evaluation to determine which vendor provides the best value to the government in terms of meeting the performance work statement, while also providing a competitive price. The following factors shall be used to evaluate offers:

Factor 1: Technical Capability

The Government will evaluate the extent to which the offeror demonstrates the ability to meet the requirements of the Statement of Work, including:

- Compliance with Policies and Procedures (SOW 2.2A, 2.25, 4.3)
- Insurance Certification (SOW 4.7)
- Infection Control Plan (SOW 4.8)
- Qualifications of Offerors (SOW 4.2)
- Capabilities Statement tailored to how contractor will deliver services/equipment required under this SOW

Factor 2: Transition Plan

The Government will evaluate the offeror's ability to transition out incumbent vendor equipment and transition in equipment under new contract; also, discuss how you will achieve phase out upon end of contract. See SOW 4.4 for distinct details regarding Phase In and Phase Out.

Evaluation will consider:

- Length of expected time to transition equipment; faster transition is better.
- Feasibility of transition plan

Factor 3: Past Performance

The Government will evaluate the offeror's recent and relevant past performance.

Factor 4: Price

Price will be evaluated for fairness and reasonableness.

(b) *Evaluations of Options.* For purposes of award of this Contract, the Government intends to evaluate the option to extend services under FAR 52.217-8 as follows: The evaluation will consider the possibility that the option can be exercised at any time and can be exercised in increments of one to six months, but not for more than a total of six months during the life of the contract. The evaluation will assume that the prices for any option exercised under FAR 52.217-8 will be those rates in effect under the contract each time an option is exercised under this clause. The evaluation will therefore assume that the addition of the price or prices of any possible extension or extensions under FAR 52.217-8 to the total price for the basic requirement and the total price for the priced options has the same effect on the total price of all proposals relative to each other, and will not affect the ranking of proposals based on price, unless, after 36C25726Q0488, when reviewing the proposals, the Government determines that there is a basis for finding otherwise. This evaluation will not obligate the Government to exercise any option under FAR 52.217-8.

(c) *Notice of award.* A written notice of award or acceptance of an offer furnished to the successful Offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of Provision)

E.5 52.216-1 TYPE OF CONTRACT (NOV 2025) (DEVIATION)

The Government contemplates award of a Firm-Fixed-Price, Indefinite Quantity contract resulting from this solicitation.

(End of Provision)

E.6 52.219-1 SMALL BUSINESS PROGRAM REPRESENTATIONS (NOV 2025) (DEVIATION)

(a) *Definitions.* As used in this provision-

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business concern eligible under the WOSB Program.

HUBZone small business concern means a small business concern that meets the requirements described in 13 CFR 126.200, is certified by the Small Business Administration (SBA) and designated by SBA as a HUBZone small business concern in the Small Business Search (SBS) (13 CFR 126.103).

Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program means an SDVOSB concern that is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300.

Small business concern—

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (b) of this provision.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern, means a small business concern that-

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by one or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States, and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals who meet the criteria in paragraph (1) of this definition.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with 13 CFR part 127) means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300.

(b)(1) The North American Industry Classification System (NAICS) code for this acquisition is 621610.

(2) The small business size standard is \$19 Million.

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce (*i.e.*, nonmanufacturer), is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition—

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(c) *Representations.*

(1) The offeror represents as part of its offer that—

(i) It ☐ is, ☐ is not a small business concern; or

(ii) It ☐ is, ☐ is not a small business joint venture that complies with the requirements of 13 CFR 121.103(h) and 13 CFR 125.8(a) and (b). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.*]

(2) [*Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.*] The offeror represents that it ☐ is, ☐ is not, a women-owned small disadvantaged business concern.

(3) *Women-owned small business (WOSB) joint venture eligible under the WOSB Program.* The offeror represents as part of its offer that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.*]

(4) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The offeror represents as part of its offer that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.*]

(5) *SDVOSB joint venture eligible under the SDVOSB Program.* [*Complete only if the offeror is certified as a SDVOSB concern.*] The offeror represents as part of its offer that it ☐ is, ☐ is not a SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [*The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.*]

(6) *HUBZone joint venture eligible under the HUBZone Program.* [*Complete only if the offeror is a HUBZone small business concern.*] The offeror represents, as part of its offer, that it ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.*] Each HUBZone small business concern participating in the HUBZone joint venture must be certified as a HUBZone concern.

(d) *Notice.*

Under 15 U.S.C. 645(d), any person who misrepresents a firm's status as a business concern that is small, HUBZone small, small disadvantaged, service-disabled veteran-owned small, economically disadvantaged women-owned small, or women-owned small eligible under the

WOSB Program in order to obtain a contract to be awarded under the preference programs established pursuant to section 8, 9, 15, 31, and 36 of the Small Business Act or any other provision of Federal law that specifically references section 8(d) for a definition of program eligibility, will be—

- (1) Punished by imposition of fine, imprisonment, or both;
- (2) Subject to administrative remedies, including suspension and debarment; and
- (3) Ineligible for participation in programs conducted under the authority of the Act.

(End of Provision)

E.7 52.233-2 SERVICE OF PROTEST (SEP 2006)

Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from:

Hand-Carried Address:

Jennifer Stringer

Department of Veterans Affairs
Central Texas Veterans HCS
1901 Veterans Memorial Dr.
Temple TX 76504

Mailing Address:

Jennifer Stringer

Department of Veterans Affairs
Central Texas Veterans HCS
1901 Veterans Memorial Dr,
Temple TX 76504

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(End of Provision)

E.8 52.222-90 ADDRESSING DEI DISCRIMINATION BY FEDERAL CONTRACTORS

As prescribed in 22.2203, insert the following clause:

ADDRESSING DEI DISCRIMINATION BY FEDERAL CONTRACTORS (DEVIATION APR 2026)

(a) *Definitions.* As used in this clause—

Program participation means membership or participation in, or access or admission to: training, mentoring, or leadership development programs; educational opportunities; clubs; associations; or similar opportunities that are sponsored or established by the contractor or subcontractor.

Racially discriminatory diversity, equity, and inclusion (DEI) activities means disparate treatment based on race or ethnicity in the recruitment, employment (e.g., hiring, promotions), contracting (e.g., vendor agreements), program participation, or allocation or deployment of an entity's resources.

(b) In connection with the performance of work under this contract, the Contractor agrees as follows:

- (1) The Contractor will not engage in any racially discriminatory DEI activities;
- (2) The Contractor will furnish all information and reports, including providing access to books, records, and accounts, as required by the Contracting Officer, for purposes of ascertaining compliance with this clause;
- (3) In the event of the Contractor's or a subcontractor's noncompliance with this clause, this contract may be canceled, terminated, or suspended in whole or in part, and the Contractor or subcontractor may be declared ineligible for further Government contracts;
- (4) The Contractor will report any subcontractor's known or reasonably knowable conduct that may violate this clause to the Contracting Officer and take any appropriate remedial actions directed by the Contracting Officer; and
- (5) The Contractor will inform the Contracting Officer if a subcontractor sues the Contractor and the suit puts at issue, in any way, the validity of this clause.
- (6) The Contractor recognizes that compliance with the requirements of this clause are material to the Government's payment decisions for purposes of 31 U.S.C. 3729(b)(4).

(c) The Contractor must include the substance of this clause, including this paragraph (c), in subcontracts at any tier, including those for commercial products and commercial services, except those where the place of delivery or performance is outside the United States.

(End of clause)

E.9 52.252-5 AUTHORIZED DEVIATIONS IN PROVISIONS (NOV 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any VAAR Acquisition Regulation (48 CFR Chapter FEDERAL ACQUISITION REGULATION (48 CFR Chapter 1)) provision with an authorized deviation is indicated by the addition of “(DEVIATION)” after the name of the regulation.

(End of Provision)

E.10 VAAR 852.215-72 NOTICE OF INTENT TO RE-SOLICIT (OCT 2019)

This solicitation provides offerors fewer than 30 days to submit proposals. In the event that only one offer is received in response to this solicitation, the Contracting Officer may cancel the solicitation and resolicit for an additional period of at least 30 days in accordance with 815.370–2.

(End of Provision)

E.11 VAAR 852.233-70 PROTEST CONTENT/ALTERNATIVE DISPUTE RESOLUTION (OCT 2018)

(a) Any protest filed by an interested party shall—

- (1) Include the name, address, fax number, email and telephone number of the protester;
- (2) Identify the solicitation and/or contract number;
- (3) Include an original signed by the protester or the protester’s representative and at least one copy;
- (4) Set forth a detailed statement of the legal and factual grounds of the protest, including a description of resulting prejudice to the protester, and provide copies of relevant documents;
- (5) Specifically request a ruling of the individual upon whom the protest is served;
- (6) State the form of relief requested; and
- (7) Provide all information establishing the timeliness of the protest.

(b) Failure to comply with the above may result in dismissal of the protest without further consideration.

(c) Bidders/offerors and Contracting Officers are encouraged to use alternative dispute resolution (ADR) procedures to resolve protests at any stage in the protest process. If ADR is used, the Department of Veterans Affairs will not furnish any documentation in an ADR proceeding beyond what is allowed by the Federal Acquisition Regulation.

(End of Provision)

E.12 VAAR 852.233-71 ALTERNATE PROTEST PROCEDURE (OCT 2018)

(a) As an alternative to filing a protest with the Contracting Officer, an interested party may file a protest by mail or electronically with: Executive Director, Office of Acquisition and Logistics, Risk Management and Compliance Service (003A2C), Department of Veterans Affairs, 810 Vermont Avenue NW, Washington, DC 20420 or Email: EDProtests@va.gov.

(b) The protest will not be considered if the interested party has a protest on the same or similar issue(s) pending with the Contracting Officer.

(End of Provision)

PLEASE NOTE: The correct mailing information for filing alternate protests is as follows:

Deputy Assistant Secretary for Acquisition and Logistics,
Risk Management Team, Department of Veterans Affairs
810 Vermont Avenue, N.W.
Washington, DC 20420

Or for solicitations issued by the Office of Construction and Facilities Management:

Director, Office of Construction and Facilities Management
811 Vermont Avenue, N.W.
Washington, DC 20420

E.13 VAAR 852.239-75 INFORMATION AND COMMUNICATION TECHNOLOGY ACCESSIBILITY NOTICE (FEB 2023)

(a) Any offeror responding to this solicitation must comply with established VA Information and Communication Technology (ICT) (formerly Electronic and Information (EIT)) accessibility standards. Information about Section 508 is available at <http://www.section508.va.gov/>.

(b) The Section 508 accessibility standards applicable to this solicitation are stated in the clause at 852.239–75, Information and Communication Technology Accessibility. In order to facilitate the Government's determination whether proposed ICT supplies meet applicable Section 508 accessibility standards, offerors must submit appropriate VA Section 508 Checklists, in accordance with the checklist completion instructions. The purpose of the checklists is to assist VA acquisition and program officials in determining whether proposed ICT supplies, or information, documentation and services conform to applicable Section 508 accessibility standards. The checklists allow offerors or developers to self-evaluate their supplies and document—in detail—whether they conform to a specific Section 508 accessibility standard, and any underway remediation efforts addressing conformance issues.

(c) Respondents to this solicitation must identify any exception to Section 508 requirements. If an offeror claims its supplies or services meet applicable Section 508 accessibility standards, and it is later determined by the Government, i.e., after award of a contract or order, that supplies or services delivered do not conform to the described accessibility standards, remediation of the supplies or services to the level of conformance specified in the contract will be the responsibility of the Contractor at its expense.

(End of Provision)

(End of Addendum to 52.212-1)